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AN APPEAL TO THE AMERICAN PEOPLE – OVERTURNING “FEDERAL INDIAN LAW”

Abstract

The famous "Marshall trilogy" – Johnson v. McIntosh, Cherokee Nation v. Georgia, and Worcester v. Georgia-is repugnant to the written Constitution of the United States as well as to the international laws and usages that have been a part of life on Turtle Island (this continent) since millennia before the first eurochristians invaded and which still constitute the true unwritten constitution of this land and the deepest legitimate source of "the law." Rooted in that licentious hybrid of fifteenth century religious jurisprudence and ethnonationalism known as the doctrine of Christian discovery, the "Marshall trilogy" established a legal framework that has systematically denied to the peoples of the Native Nations their constitutional rights. In particular, it has denied them their right to have the obligations of the United States under their treaties adhered to as the "supreme law of the land" and also their right to enforce these legal obligations in the Supreme Court under its original jurisdiction in any case arising under a treaty in which a state is a party to the case. Without the legal structure established by the "Marshall trilogy," including the "right" of the United States to enter Native Nations without their prior permission that was fabricated in Worcester so as not to interfere with the Trail of Tears, the land thefts and genocides of the 1830s, as well as those that followed in the so-called "Indian Wars," could never have taken place. Nor could such subsequent horrors as the boarding "schools" and the exploitations and oppressions and treaty violations that continue to this day. The "trust" in any treaty relationship is the trust on both sides that the treaty will be adhered to. This is precisely what the "trust relationship" denies whenever the United States wishes to deny it on the basis of a claim that the Native Nations are, in the words of Cherokee Nation, "completely under the sovereignty and dominion of the United States." This is a claim-like the analogous "states' rights" claim that these nations are subordinate to the individual states-that is repugnant to constitutional law (properly construed).

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The famous “Marshall trilogy” – *Johnson v. McIntosh*, *Cherokee Nation v. Georgia*, and *Worcester v. Georgia* – is repugnant to the written Constitution of the United States as well as to the international laws and usages that have been a part of life on Turtle Island (this continent) since millennia before the first eurochristians invaded and which still constitute the true unwritten constitution of this land and the deepest legitimate source of “the law.” Rooted in that licentious hybrid of fifteenth century religious jurisprudence and ethnonationalism known as the doctrine of Christian discovery, the “Marshall trilogy” established a legal framework that has systematically denied to the peoples of the Native Nations their constitutional rights. In particular, it has denied them their right to have the obligations of the United States under their treaties adhered to as the “supreme law of the land” and also their right to enforce these legal obligations in the Supreme Court under its original jurisdiction in any case arising under a treaty in which a state is a party to the case. Without the legal structure established by the “Marshall trilogy,” including the “right” of the United States to enter Native Nations without their prior permission that was fabricated in *Worcester* so as not to interfere with the Trail of Tears, the land thefts and genocides of the 1830s, as well as those that followed in the so-called “Indian Wars,” could never have taken place. Nor could such subsequent horrors as the boarding “schools” and the exploitations and oppressions and treaty violations that continue to this day. The “trust” in any *treaty relationship* is the trust on both sides that the treaty will be adhered to. This is precisely what the “trust relationship” denies whenever the United States wishes to deny it on the basis of a claim that the Native Nations are, in the words of *Cherokee Nation*, “completely under the sovereignty and dominion of the United States.” This is a claim – like the analogous “states’ rights” claim that these nations are subordinate to the individual states – that is repugnant to constitutional law (properly construed).

Living “with the Earth” – instead of seeking to dominate Her – gives rise to what might be called “*creational* identities.”¹ These identities are rooted in the fact that all living beings – animate and inanimate – are our kith and kin and form a beloved community of which human beings are a small and dependent part who are responsible to act with respectful, reciprocal, trustworthy, and consensual conduct towards all life in pursuit of alignment with the balance and harmony and abundance of the Earth and Her cosmic society. Knowledge of this responsibility – of this ontological truth – is the foundation of global knowledge; the foundation of those aspects of Indigenous knowledge that are perhaps easiest for non-Natives to apprehend.

The great Confucian scholar Zhang Zai sought to share something that may be considered resonant with such global knowledge a thousand years ago: “Heaven is my father and Earth is my mother, and even such a small creature as I find an intimate place in their midst. Therefore

¹ Steven Schwartzberg, “First Voices Radio, 9 June 2024: Steven Schwartzberg Guest,” First Voices Radio, <https://radiokingston.org/en/broadcast/first-voices-radio/episodes/steven-schwartzberg-guest> (accessed Nov. 29, 2024).

that which fills the universe I regard as my body and that which directs the universe I consider as my nature. All people are my brothers and sisters, and all things are my companions.”²

Global knowledge requires overturning what the American Bar Association calls “federal Indian law.” This is a body of “law” that is not made by the peoples of the Native Nations of Turtle Island (this continent), but rather one imposed upon them on the basis of Supreme Court precedents that are repugnant to the written Constitution of the United States as well as to the international laws and usages that have been a part of life on Turtle Island since millennia before the eurochristian invaders arrived and which still constitute the true unwritten constitution – the deepest legitimate source – of “the law” of this land.³

Treaties, which represent the hope of reaching mutual understanding across this divide between written and unwritten law – and, indeed, between fundamentally different visions of what we mean by “the law,” are denied their true meaning and potential by “federal Indian law.” This “federal Indian law” is not an expression of law but rather of tyranny. It is completely incompatible with what it means to be a democratic people engaged in self-government under an international legal and moral order that guarantees the same rights to all peoples.

The dominant narrative in our world speaks of secular “*national* identities” replacing an earlier age’s “*religious* identities” (or at least largely subordinating and attenuating their hold on who we see ourselves as being and so determining our understanding of our relationship to “the law”).⁴ There is hardly any space in this secular dominant narrative – or, for that matter, in its formerly dominant religious antecedents and their remnants – for global knowledge, except, perhaps, as an eccentric “personal choice.”

There is an alternative narrative offered by those who have what my friends Steve Newcomb (Shawnee-Lenape) and Tiokasin Ghosthorse (Lakota) call “the view from the shore.”⁵ This view involves the perspectives of hundreds of distinct Native Nations. But even without great study of the perspectives of those on the shore – the perspectives of those watching the ships of the dominators carrying their system of domination with them – there are observations that they share with which one can begin to discern a different reality: They all maintain, at least in my experience, that the claim that one can “discover” an already inhabited land and, by that

² Tu Weiming, *The Global Significance of Concrete Humanity* (New Delhi: Center for Studies in Civilization, 2010), 243.

³ Steven J. Schwartzberg, *Arguments over Genocide: The War of Words in the Congress and the Supreme Court over Cherokee Removal* (Bradford: Ethics International Press, 2023); Peter P. d'Errico, *Federal Anti-Indian Law: The Legal Entrapment of Indigenous Peoples* (Santa Barbara: Praeger, 2022); Steven T. Newcomb, *Pagans in the Promised Land: Decoding the Doctrine of Christian Discovery* (Golden, CO: Fulcrum Publishing, 2008); Thurman Lee Hester, *Political Principles and Indian Sovereignty* (New York: Routledge, 2001). Maggie Blackhawk has recently provided a trenchant critique of the way the United States holds hundreds of governments in subordination, but without criticizing this conduct – and the body of “law” that sustains it – as repugnant to the intentions of the framers of the Constitutions, the clear language of the text, and the meaning it held for its “original” readers. Maggie Blackhawk, *The Constitution of American Colonialism*, 137 Harv. L. Rev. 137, no. 1 (November 2023), 1-152.

⁴ Liah Greenfeld, *Nationalism: Five Roads to Modernity* (Cambridge: Harvard University Press, 1992); *The Spirit of Capitalism: Nationalism and Economic Growth* (Cambridge: Harvard University Press, 2001); *Nationalism and the Mind: Essays on Modern Culture* (Oxford: Onworld Publications, 2006); *Mind, Modernity, Madness: The Impact of Culture on Human Experience* (Cambridge: Harvard University Press, 2013).

⁵ Steven T. Newcomb, *Pagans in the Promised Land: Decoding the Doctrine of Christian Discovery* (Golden, CO: Fulcrum Publishing, 2008). In addition, see the one-hour documentary film that Newcomb co-produced, “The Doctrine of Discovery: Unmasking the Domination Code,” https://www.youtube.com/watch?v=LAzjr_IMRxc (accessed May 4, 2021).

“discovery,” assert a “right” over the land and its inhabitants, is absurd and dishonest. They all view the consequent violence by which the “discoverers” and their heirs and successors have sought to dominate the peoples and lands of the Native Nations and force a foreign cultural pattern upon them as a violation of any meaningful conception of justice or right relations. To these observations I will add that the absurdity, and the dishonesty, and, above all, the illegality and illegitimacy of the consequent violence, was seen as such by the best western practitioners of the law of nations such as the sixteenth century Dominican jurist, Bartolomé de Las Casas, and the eighteenth century Pennsylvania jurist, and constitutional architect, James Wilson.⁶

According to Las Casas, “war against the Indians, which we call in Spanish, *conquistas*, is evil and essentially anti-Christian.... war against the Indians is unlawful.”⁷ According to Wilson, “We have no right over the Indians, whether within or without the real or pretended limits of any Colony.”⁸ And, as if to put the sharpest possible point on the issue, Wilson went on to stress to the Continental Congress, in July 1776: “Grants made three thousand miles to the eastward, have no validity with the Indians.”⁹

[The] Natives (of America),” Las Casas insisted, “having their own lawful kings and princes, and a right to make laws for the good government of their respective dominions, could not be expelled out of them, or deprived of what they possess, without doing violence to the laws of God, as well as the laws of nations.”¹⁰

When God divided kingdom from kingdom and people from people – when he gave the nations their inheritance – it was, Las Casas maintained, for the common good of each. The office of ruler had been established especially that its holder might be diligently concerned with the public good: “For whatever right a king has, he has by the consent of his people. If a king should die without heirs, the right of choosing a new king belongs to the people.... injustice is committed by depriving a community or people of its right of choice without any lawful cause.”¹¹

Those apologists for Spain’s grotesque misconduct who claimed to find a sanction for violence in the gospels (specifically in Luke 14:16-23) were articulating an opinion that Las Casas maintained was “completely foreign to all reason and Christian teaching.”¹²

⁶ Kermit L. Hall & Mark David Hall, eds., *The Collected Works of James Wilson* (Indianapolis: Liberty Fund, 2007); William Ewald, “James Wilson and the American Founding,” *Georgetown Journal of Law and Public Policy* 17, no. 1 (Winter 2019), 1-21; John Mikhail, *The Constitution and the Philosophy of Language: Entailment, Implicature, and Implied Powers*, *Virginia Law Review* 101, no. 4 (June 2014), 1063-1103; Randy E. Barnett, ed., *The Life and Career of Justice James Wilson* (Washington, DC: Georgetown Center for the Constitution, 2019); Akhil Reed Amar, *The Words that Made Us: America’s Constitutional Conversation, 1760-1840* (New York: Basic Books, 2021), 206-12.

⁷ Bartolomé de Las Casas, *In Defense of the Indians*, trans. Stafford Poole, C.M. (DeKalb: Northern Illinois University Press, 1992), 355.

⁸ James Wilson, *Notes of Debate*, 26 July 26, 1776, *Journals of the Continental Congress*, vol. 6 (1774-1789), 1078.

⁹ Wilson, *Notes of Debate*, 1078.

¹⁰ Quoted in Samuel Wharton, *Plain Facts: Being an Examination Into the Rights of the Indian Nations of America, to Their Respective Countries*, (R. Aitken, 1781), 4.

¹¹ Las Casas, *In Defense of the Indians*, 47, 246, 338.

¹² *Ibid.*, 69.

According to this gospel passage, Jesus spoke of a man who gave a great supper and invited many, but found that those originally invited made excuses and did not come. He then ordered his servant to invite the poor and the lame, the blind and the maimed, from the streets and lanes of the city. When this had been done, and there was still space for more, the master ordered his servant to go out to the highways and hedges and “compel them to come in.”

That passage had traditionally been interpreted as involving spiritual persuasion, not violence, Las Casas insisted: the use of violence was tyrannical and in direct opposition to the instructions of Christ to his disciples and to the example they established.

Pope Alexander VI could not have given dominion over the New World to Spain, Las Casas argued, because the New World was outside of the Pope’s jurisdiction; dominion there was in the hands of the Native Nations.¹³ In fact, Las Casas insisted, “the Church is nothing other than the whole Christian people, strengthened in faith and united in the society and communion of the sacraments.”¹⁴ Non-baptized persons were not under the jurisdiction of the church and the church had no authority, even to punish idolaters, outside its borders and territory.

For no judge pronounces sentences outside his borders. The king of France does not pronounce sentences in Spain nor does the king of Spain dictate laws for France, nor does the Emperor himself, in his travels, use his imperial authority outside the borders of his empire. [In all these cases] there is a lack of that power and jurisdiction which in his indescribable wisdom the author of nature has prescribed within certain limits for each nation and prince so as to safeguard and preserve the common good of each. For this reason jurisdiction is said to be implanted in a locality or territory, or in the bones of the persons of each community or state, so that it cannot be separated from them any more than food can be separated from the preservation of life.¹⁵

Sovereignty resides in the bones of the peoples of every Native Nation on this continent. And it is precisely in order to attack this sovereignty that the bones of so many Native persons are kept in American museums. Beneath the lies and the violence of the United States – beneath the deliberate doubling down on moral depravity of its anti-constitutional laws and its wrongly decided Supreme Court opinions – the truth remains of a legal right to sovereignty in the peoples of the Native Nations that is identical with the legal right to sovereignty of the people of France, or the people of China, or the people of South Africa.

From James Wilson’s perspective, there was a natural law obligation on all nations, as on all individuals, to respect the international moral and legal order under which the equal rights of every nation and every national are claimed to be upheld. The equality of all international persons, Wilson made clear in his law lectures in 1790-1791, is what membership in the society of nations is all about: “Of that great society, equality is the basis and the rule. To this equality, the inferiority of subjection and the superiority of command are, alike, repugnant.”¹⁶ “This equality of nations is the great and general foundation of national rights,” Wilson continued: “In this matter no regard is had to names. Of the great theater of the world, empires, kingdoms,

¹³ Ibid., 84.

¹⁴ Ibid, 80.

¹⁵ Ibid, 82-83.

¹⁶ James Wilson, “*Of Man, as a Member of the Great Commonwealth of Nations*,” in Kermit L. Hall & Mark David Hall, eds., *The Collected Works of James Wilson*, vol. 1, 674-75.

commonwealths, principalities, dukedoms, free towns, are all equally imperial. A society, which, without subordination to any other, exercises within itself all the essential powers of society, is sovereign, and has all the rights of a sovereign and independent state; however narrow its territories; however small its numbers may be.”¹⁷

Wilson’s position that the United States had “no right” over sovereign and independent Native Nations was not an isolated one. According to his biographer, Charles Page Smith, Wilson played the leading role in the early formulation of Indian policy in the Continental Congress: “If the positions he held and the frequency with which he appeared on committees concerned with Indian affairs are an index, he was until his departure from Congress in 1777 the most active and influential single delegate in laying down the general outline that governed the relations of Congress with the border tribes.”¹⁸

Supreme Court Associate Justice Smith Thompson, in his famous dissent in *Cherokee Nation v. Georgia*, in 1831, addressed the question of whether the Cherokee Nation was a competent party to sue in the Supreme Court, whether the case in their bill warranted the court in granting relief, and whether an injunction was fit and appropriate relief. He began by noting that a state of the union could clearly be sued by a foreign state under the constitution and that the Supreme Court had original jurisdiction in such cases.

The terms *state* and *nation* are used in the law of nations, as well as in common parlance, as importing the same thing; and imply a body of men, united together, to procure their mutual safety and advantage by means of their union. Such a society has its affairs and interests to manage; it deliberates, and takes resolutions in common, and thus becomes a moral person, having an understanding and a will peculiar to itself, and is susceptible of obligations and laws.... a weak state, that, in order to provide for its safety, places itself under the protection of a more powerful one, without stripping itself of the right of government and sovereignty, does not cease on this account to be placed among the sovereigns who acknowledge no other power.¹⁹

Surely the Cherokee people were a foreign nation before the New World was discovered by Europeans, Justice Thompson continued: “And if the Cherokees were then a foreign nation; when or how have they lost that character, and ceased to be a distinct people, and become incorporated with any other community?”²⁰ As for their lands, their occupancy belongs to them by right and is not a mere indulgence. “They cannot be disturbed in the enjoyment of it, or deprived of it, without their free consent; or unless a just and necessary war should sanction their dispossession.”²¹ As to whether they were foreign in the sense of the constitution or not, “it is their political condition that constitutes their *foreign* character, and in that sense must the term *foreign*, be understood as used in the constitution.”²²

¹⁷ Wilson, *Of Man*, 674-75.

¹⁸ Charles Page Smith, *James Wilson: Founding Father, 1742-1798*, (Chapel Hill: University of North Carolina Press, 1956), 72

¹⁹ *Cherokee Nation v. Georgia*, 30 U.S. 1, 5330 (5 Pet.) 1, 53 (1831). I am grateful to Konya Lafferty for introducing me to this dissent.

²⁰ 30 U.S. 30 (5 Pet.), at 54 (1831).

²¹ *Ibid.*

²² *Ibid.*

What is a treaty as understood in the law of nations? It is an agreement or contract between two or more nations or sovereigns, entered into by agents appointed for that purpose, and duly sanctioned by the supreme power of the respective parties. And where is the authority, either in the constitution or in the practice of the government, for making any distinction between treaties made with the Indian nations and any other foreign power?”²³ The terms “nation” and “tribe” were frequently used indiscriminately in the journals of the old congress, and as importing the same thing. As for an effort to distinguish nations from tribes in the commerce clause or elsewhere, “it appears to me of too doubtful import to outweigh the considerations to which I have referred to show that the Cherokees are a foreign nation.”²⁴

That this is not how the “tribal sovereignty” of the Native Nations of Turtle Island is defined and understood in what currently passes as either international law or American law, or is widely perceived among non-Native people, testifies not only to the effectiveness of sustained illegal and illegitimate American conduct, but also to some of the ways in which the meaning of sovereignty itself is far from universally understood.²⁵ It testifies to the fact that in the “modern” world – the world of an ascendant nationalism – neither international law nor American constitutional law are widely understood as having to conform to a law of nations that must itself conform to the laws of nature and of Nature’s God. Both the framers of the American Constitution and the “original” readers of that text had a very different understanding of “the law.”²⁶

I will readily admit that whether the “true universalism” to which I aspire is either possible or desirable is an open question. It is beyond doubt, however, that the “false universalisms” associated with this passing age – whether religious or secular – have wrought more devastation and destruction than the mind can grasp and that any universalism that fails to respect Indigenous ontologies – and that fails to address Indigenous understandings and experiences – is so inadequate as to be false.

Global knowledge begins with gratitude. It begins with a fact that we can all acknowledge, whatever our antagonisms – that we all share in the goodness of the gift of life: that we are all

²³ 30 U.S. 30 (5 Pet.), at 60 (1831).

²⁴ 30 U.S. 30 (5 Pet.), at 63 (1831).

²⁵ Throughout the United Nations Declaration on the Rights of Indigenous Peoples, “indigenous peoples” are distinguished from “States” and clearly subordinated to them. Article 46 states that “Nothing in this Declaration may be interpreted as implying for any State, people, group or person any right to engage in any activity or to perform any act contrary to the Charter of the United Nations or construed as authorizing or encouraging any action which would dismember or impair, totally or in part, the territorial integrity or political unity of sovereign and independent States.” https://www.un.org/development/desa/indigenouspeoples/wp-content/uploads/sites/19/2018/11/UNDRIP_E_web.pdf (accessed March 30, 2024). See also Padraig Kirwan, “‘Mind the Gap’: Journeys in Indigenous Sovereignty and Nationhood,” *Comparative American Studies* (2015), https://www.academia.edu/93311114/_Mind_the_Gap_Journeys_in_Indigenous_Sovereignty_and_Nationhood (accessed December 28, 2024).

²⁶ *Henfield’s Case*, 3 U.S. (3 Dall.) 3 (1793). See also Thomas H. Lee, “*The Supreme Court of the United States as Quasi-International Tribunal: Reclaiming the Court’s Original and Exclusive Jurisdiction over Treaty-Based Suits by Foreign States*,” 104 *Columbia Law Review* 104, no.7, (November 2004), 1765-1885.

“of creation.”²⁷ This kind of global knowledge is part of our spiritual DNA. And yet our awareness of it can be deepened by such grandmother / grandfather teachings as those of the Anishinaabeg concerning love, respect, bravery, honesty, humility, wisdom, and truth.²⁸ It is through consensual conduct reflecting such teachings that we learn to use what I have called our spiritual lateral lines to align with the balance and harmony and abundance of the Earth.²⁹ It is through these lateral lines and by sharing good gifts that we align with Her cosmic society.³⁰ And it is by sharing such global knowledge – and by acting upon it as peoples – that we may reach mutual understanding across the global great divide in world politics between those who believe in domination and those who do not and so together come to follow a better path.

A “true universalism” must involve recognition that “the law” need not derive from either “secular” or transcendental “divine” authority, but can emerge rather from the Earth and her cosmic society, and need not in any way involve domination. Failing to accurately perceive the nature of law in much of the Indigenous world, both Las Casas and Wilson (and their allies) were at a disadvantage in seeking to defend the societies based upon it from the idolatrous variant of Christianity that became ascendant in sixteenth century Spain and which reemerged in nineteenth century United States Supreme Court decisions (in Protestant and secular guise) before asserting ascendancy again globally, particularly through “secular” European imperialism, but even as “decolonization” spread from Latin America to Africa and Asia leaving in its wake “nation-states” rather than genuinely self-governing peoples as a result of its nationalism. The reemergence to ascendancy of this idolatrous variant of Christianity took place after an “Enlightenment,” and a democratic revolution, that had sought something markedly different and better than a religious fanaticism which made of the nation almost an object of worship and that justified extreme nationalist treaty-breaking violence in “Christian” terms.³¹ It is this idolatrous variant of Christianity – placing violence on behalf of the nation as an idol before God – which led to the Supreme Court’s wrongly decided opinions in *Johnson v. McIntosh*, in 1823, and in *Cherokee Nation v. Georgia*, in 1831.

These decisions at the foundation of “federal Indian law” are as repugnant to the Constitution as *Plessy v. Ferguson* and *Dred Scott v. Sandford* and should be overturned in the interest of justice for the peoples of the Native Nations and the cause of restoring a measure of integrity to American constitutional law. This is the case regardless of whether one emphasizes the intentions of the framers, or the “plain” meaning of the text of the Constitution, or the meaning perceived by the “original” readers of that text. An accurate interpretation of the Constitution does require a democratic understanding of the law of nations and of natural law as an

²⁷ My friend JoDe Goudy tells of a Christian friend of his who described himself as a “child of God” and then asked how JoDe would identify himself to which JoDe replied: “of creation.” JoDe is the founder and owner of <https://www.redthought.org>

²⁸ John Borrow, *Law’s Indigenous Ethics* (University of Toronto Press, 2019).

²⁹ Harold Napoleon, *Yuuyaraq: The Way of the Human Being* (Anchorage, AK: The Native Village of Paimuit, 1996); Calvin Luther Martin, *The Way of the Human Being* (New Haven: Yale University Press, 1999); Jean L. Briggs, *Never in Anger: Portrait of an Eskimo Family* (Cambridge: Harvard University Press, 1970).

³⁰ Lewis Hyde, *The Gift: How the Creative Spirit Transforms the World* (New York: Vintage, 2019).

³¹ *Argument of Mr. Wirt*, in Richard Peters, *The Case of the Cherokee Nation Against the State of Georgia* (Philadelphia: James Kay, 1831), 95-96.

interpretive framework. It is precisely such an understanding that the “Marshall trilogy” – and its advocates and appeasers – have sought to repudiate and replace it with a framework grounded in nationalism instead.

Speaking for a resolution recommending sending the question of the judiciary to the committee of detail, a resolution that was unanimously adopted by the constitutional convention, Virginia Governor Edmund Randolph argued for “the security of foreigners where treaties are in their favor.”³² In the committee of detail James Wilson and his allies would craft what would become what I have called the Treaty Supremacy Clause: “all Treaties made, or which shall be made, under the Authority of the United States, shall be the supreme Law of the Land; and the Judges in every State shall be bound thereby, any Thing in the Constitution or Laws of any State to the Contrary notwithstanding” in Article VI, Section 2 – in conjunction with the right of Tribes and other nations to sue states of the union in Article III, Section 2’s grant of jurisdiction to the judiciary in *all* cases “arising under ... Treaties,” and made explicitly original jurisdiction in the Supreme Court in *all* cases to which a state of the Union is party.

My argument in this regard, discussed below and rooted in James Wilson’s law lectures (and Wilson was the principal draftsman of Article III, Section 2), is that the Constitution gives the Supreme Court original jurisdiction in all nine categories of cases specified in Article III, Section 2, (including those cases referred to as controversies) until such time as the Congress chooses to create lower federal courts in which eventuality the Supreme Court still retains original jurisdiction in any case within any of the nine categories of cases specified in which a state is party to the case or ambassadors or other public ministers and counsels are affected.³³

Anyone who paid even the slightest attention in 1788,” as law professor Akhil Reed Amar has noted, “understood that the Supreme Court would have appellate authority over state courts. The Philadelphia plan sought to prevent states from defying the Constitution in the same way that they had routinely ignored the Articles of Confederation. In particular, the system aimed to ensure that no state could flout a federal treaty in ways that might be popular locally but would ire a foreign government that might then wreak revenge on the United States as a whole.”³⁴

In *Cherokee Nation v. Georgia*, in 1831, a much more parochial Supreme Court Justice than James Wilson, namely Chief Justice John Marshall, claimed that when “the term ‘foreign state’ is introduced [in the Constitution], we cannot impute to the [constitutional] convention the intention ... to comprehend Indian tribes within it unless the context force that construction on us. We find nothing in the context, and nothing in the subject of the article, which leads to it.”³⁵

³² *Notes of the Secret Debates of the Federal Convention of 1787, Taken by the Late Hon. Robert Yates, Chief Justice of the State of New York, and One of the Delegates from That State to the Said Convention*, https://avalon.law.yale.edu/18th_century/yates.asp (accessed April 14, 2020).

³³ Stephen Breyer, “The Cherokee Indians and the Supreme Court,” *Georgia Historical Quarterly* 87 (Fall/Winter 2003): 416; James E. Pfander, “Rethinking the Supreme Court’s Original Jurisdiction in State-Party Cases,” *California Law Review* 82 (May 1994): 618

³⁴ Amar, *The Words That Made Us*, at 574; Thomas H. Lee, “The Supreme Court of the United States as Quasi-International Tribunal: Reclaiming the Court’s Original and Exclusive Jurisdiction over Treaty-Based Suits by Foreign States against States,” *Columbia Law Review* 104 (November 2004): 1765, 1885.

³⁵ 30 U.S. (5 Pet.) 1, at 19 (1831).

In fact, a moment’s reflection on why the framers granted foreign states the right to sue states of the United States will suffice to force precisely that construction. The intention was to improve the faith and credit that foreign nations could place in the United States to keep its word and to hold the country to its promises. It was a matter of virtue, honor, and a self-interest centering on the establishment of a new mechanism with which to contribute to prosperity, and to the maintenance of peace, by upholding established agreements and resolving international controversies through the American judiciary administering the law of nations in American courts.³⁶

Our country needs a revival and deepening of this “Brotherhood First” approach, and our world needs a revival of natural law, not so much as it was understood by the best of its western practitioners – such as Bartolomé de Las Casas and James Wilson – but more as it was and is understood by the elders of the peoples of the Native Nations of Turtle Island, especially when they speak of respect for “all our relations.” Only such a revival can make the meaning of sovereignty clear and universally intelligible across the global great divide in world politics. This will involve a radical rethinking not only of the “secular” foundations of the “modern” age but also of the “religious” antecedents of which these secular foundations are largely unthinking articulations such as the claim that human beings are separate from and superior to the natural world.

I do not mean to draw a simple line between God’s alleged instruction to dominate the natural world in Genesis 1:28 – an instruction reiterated after the flood in Genesis 9:2 – and the dominationist politics that plague our world, but I think George Manuel (Secwepemc) of the National Indian Brotherhood – known today as the Assembly of First Nations – was on to something when he said: “Perhaps when men no longer try to have ‘dominion over the fish of the sea, and over the fowl of the air, and over every living thing that liveth upon the earth,’ they will no longer try to have dominion over us. It will be much easier to be our brother’s keeper then.”³⁷

The Age of Apocalypse that began for the peoples of the Native Nations more than five centuries ago along the west coast of Africa before crossing the Atlantic – the Age of Apocalypse that began with what the eurochristians would come to call the Age of Discovery – now promises to engulf the planet as a whole in what that great poet of the People, John Trudell (Dakota), calls “tech-‘no-logic’ civilization.”³⁸ This may wind up intensifying the horrors rooted in the violence and dishonesty of this age or, perhaps, will open instead to something dramatically different and fundamentally better. Trudell expressed the view that life and time – and, with them, evolution – are on our side. It is important, he maintained, to be an

³⁶ James Wilson, “Of Man,” 686-688.

³⁷ George Manuel, *The Fourth World: An Indian Reality* [1974] (Minneapolis: University of Minnesota Press, 2019), 264-65.

³⁸ John Trudell, “What it Means to be a Human Being,” March 15, 2001, The Women’s Building, San Francisco, radio TUC (Time of Useful Consciousness) (two parts), http://www.radio4all.net/files/tuc@tucradio.org/44-2-JohnTrudellONE_2014.mp3; http://www.radio4all.net/files/tuc@tucradio.org/44-2-JohnTrudellTWO_2014.mp3. There is a transcript: https://ratical.org/many_worlds/JohnTrudell/HumanBeing.html#s2.

“evolutionary” rather than a revolutionary. Those behind the dominationist-driven machine are incredibly violent and cannot be out-fought. They must be out-thought instead.³⁹

The “creational identities” to which I referred earlier are a matter of ontological truth for those who have eyes to perceive this truth. For those who do not, it should still be noticeable that these identities exist and that they are associated with epochs and with regions of the globe that have their own ways of understanding “the law.” These ways are as different from those marked by “religious identities” and “national identities” in this regard as the latter are from each other. Yet the reality of these “creational identities” has almost completely escaped notice among the advocates of the dominant narrative. This has been a great loss to all of us, but particularly to those caught up in the dominant narrative who have sought to advocate for democracy and human rights without knowledge of the social self-understandings and traditional practices that have been essential for genuine self-government on Turtle Island for millennia.

Democracy and human rights as we know them – better than raw dictatorship as they may very well be in some respects – can nevertheless be considered as a *failed attempt* to enter or reenter into millennia of Indigenous culture and history; a *failed attempt* to emulate the more genuine self-government of the peoples of the Native Nations and belong to the land, and to fellowship with Her inhabitants, rather than to see the land and its inhabitants as the property of any ruler.

For those on the side of the global great divide who believe in benevolent authority (however variously defined) – who would distinguish sharply between what they consider legitimate and malevolent authority – a politics of domination is seen as desirable or as a necessary evil provided that it is not conducted by what they consider malevolent authority. This belief in benevolent authority can be considered as a call for love and a fearful response to life.

Attempting to emulate the more courageous response to life of the peoples of the Native Nations (although without giving them any credit), the society of the United States was founded with the aspiration of realizing a simple principle: the sovereignty of the people. It was the American people, before the existence of any of the states, who rallied together in support of the Declaration of Independence.⁴⁰ It was the American people whose love for one another, and for their desire to maintain their liberties in the face of British aggression, formed them into one body. The mind of that body is the American nation and the ego of that mind is the American government which – according to the theory of American democracy – must always be kept in check by the vigilance of the people so that it is their servant and not their master.

This theory of American democracy was articulated most eloquently by James Wilson in his law lectures in 1790-1791. The entire House of Representatives and the Senate of the United States – and the entire Pennsylvania House of Representatives and Senate as well – attended the first of these lectures, as did the President and Martha Washington, and the Vice President and Abigail

³⁹ John Trudell, “I’m Crazy: Live, Learn, Love,” December 12, 2010, <https://www.youtube.com/watch?v=ctUecTdPEO0> (accessed November 21, 2024).

⁴⁰ See Danielle Allen and Emily Sniff, “Golden Letters: James Wilson, the Declaration of Independence, and the Sussex Declaration,” *Georgetown Journal of Law and Public Policy* 17 (Winter 2019): 193–230.

Adams, and they are a marvel to read.⁴¹ They provide an authoritative context in which to understand the intentions of the framers of the Constitution in terms of the revolutionary American democratic jurisprudence that helps inform it and which has in the past enabled reform movements to appeal to the Constitution as if it were a “promissory note”:

[When] I say that, in free states, the law of nations is the law of the people; I mean that, as the law of nature, in other words, as the will of nature’s God, it is indispensably binding upon the people, in whom the sovereign power resides; and who are, consequently, under the most sacred obligations to exercise that power, or to delegate it to such as will exercise it, in a manner agreeable to those rules and maxims, which the law of nature prescribes to every state, for the happiness of each, and for the happiness of all. How vast – how important – how interesting are these truths! They announce to a free people how exalted their rights are; but at the same time, they announce to a free people how solemn their duties are.⁴²

What American democracy lacked from the beginning was a detailed social self-understanding among the American people of how to overcome the American ego – the American federal and state governments – an understanding grounded in Indigenous ontologies and practices rather than in the largely ineffectual abstractions of the “Enlightenment” and its notions of virtue. These notions and abstractions proved unable to cope with the licentious character of the hybrid of fifteenth century religious and nationalist jurisprudence that formed the basis for “states’ rights” and its defense of slavery and which, after it was nationalized as the basis of U.S. property law in *Johnson v. McIntosh* in 1823, set the stage for the land thefts and genocides of the 1830s as well as those of the “Indian Wars” that followed and such subsequent horrors as the boarding “schools” and the exploitations and oppressions and treaty violations that continue to this day.⁴³

We cannot change a past in which President Andrew Jackson was specifically warned by his secretary of war, Lewis Cass, in September of 1831, that without adequate preparations “great sufferings must be encountered upon the journey, and many will doubtless perish.”⁴⁴ Within a matter of months one in five members of the Choctaw Nation were dead.⁴⁵ And the killing, for that is what it was, went on for year after year – for a decade – as nation after nation was driven west and away from their ancestral lands. The death toll would probably exceed sixty million people if it were to happen to the American people today. That is the scale of the horror. We can and we must repudiate and overturn the body of “law” that allowed these and subsequent crimes as well as the assaults on the peoples of the Native Nations (masked by a spurious legality) that are currently being inflicted upon them in accordance with the poisonous precedents of the “Marshall trilogy” – especially the false claim of a “right” to dominate the Native Nations and their lands and to unilaterally ignore or override treaty obligations to them

⁴¹ Mark David Hall, “Biographical Essay: History of James Wilson’s Law Lectures,” in Kermit L. Hall and Mark David Hall, eds., *The Collected Works of James Wilson*, vol. 1 (Indianapolis: Liberty Fund, 2007), 403.

⁴² James Wilson, “Chapter IV. Of the Law of Nations,” in Hall and Hall, eds., *The Collected Works of James Wilson*, vol. 1, 532.

⁴³ See Peter P. d’Errico, *Federal Anti-Indian Law: The Legal Entrapment of Indigenous Peoples* (Praeger, 2022).

⁴⁴ Lewis Cass to Andrew Jackson, September 1831, text in Daniel Feller, Laura-Eve Moss, Thomas Coens, and Erik B. Alexander, eds., *The Papers of Andrew Jackson*, vol. 9, (Knoxville: The University of Tennessee Press, 2013), 541.

⁴⁵ A. J. Langguth, *Driven West: Andrew Jackson and the Trail of Tears to the Civil War* (New York: Simon and Schuster, 2010), 165–66.

on the basis of a “plenary power” or “ultimate dominion” that simply does not exist in either the individual states or the United States according to constitutional law (properly construed).

That American “democratic institutions” – including the Supreme Court – sanctioned the genocide of the 1830s, underlines the fact that the ascendant tradition in American jurisprudence since *Johnson v. McIntosh* has been informed by nationalism more than by a Wilsonian vision of democracy. This has been true globally as well. Governments calling themselves “liberal democracies” have spread internationally during these years, and a Civil War was even fought in the United States over slavery in part because of continuing belief in the natural law appealed to in the Declaration of Independence, but it has been the framework of nationalism that has emerged triumphant in what is commonly seen as “the law.”

I consider nationalism’s misguided view of society as ultimately rooted in the way the Axial Age religions redefined divinity in transcendental rather than immanent language.⁴⁶ This redefinition drew perceptions of the sacred away from the indwelling spirits of the Earth and her inhabitants – and their relationships – towards the sky or some other “higher” realm. It ultimately led to an emphasis on the framework of a legal and moral order to be established, maintained, and developed by an (allegedly benevolent) authority supposedly acting in defense of ideas of justice and “rights” informed by the transcendent values of an international moral and legal order rather than an emphasis on the responsibilities of all to engage in respectful, reciprocal, trustworthy, and consensual conduct towards all life in order to maintain alignment with the already existing balance and harmony and abundance of a cosmic society of which humans are a small and dependent part – the society of our grandmother Earth.

As nationalism gained the ascendancy in the social self-understanding of modern societies, perception of the sacredness of this international moral and legal order, originating in, or revealed through, transcendentalist religion, was, in turn, largely redefined away so that a nation’s “will” (however variously discerned) was seen as the only just source of authority with nothing “above” it to which it was answerable and its “will” alone as the lawful measure of orderly conduct. As the Abbé Sieyès put it in his famous pamphlet of 1789, *What is the Third Estate?*: “But how, in the light of this, is it possible to claim that the *nation* itself ought to have been given a constitution? The nation exists prior to everything; it is the origin of everything. Its will is always legal. It is the law itself.”⁴⁷

It is a nationalist understanding of “the law” that enabled the land thefts and genocides of the 1830s (and afterwards) to receive the legal sanction of the “democratic institutions” of the United States. This understanding remains the ultimate legal framework of “liberal democracy” in all countries where it is present to this day. It is also the ultimate legal framework of numerous nationalist dictatorships. But this framework itself is deeply rooted in the doctrine of Christian discovery with its claim that eurochristian nations can, in effect, do whatever they want to those deemed “outside” the Body of Christ.

Those eurochristian invasions that began the Age of Apocalypse along the west coast of Africa in the fifteenth century, and those eurochristian invasions of what came to be called the New

⁴⁶ Marshall Sahlins, *The New Science of the Enchanted Universe: An Anthropology of Most of Humanity* (Princeton: Princeton University Press, 2022).

⁴⁷ Emmanuel Joseph Sieyès, *Political Writings*, edited with an introduction by Michael Sonenscher, (Indianapolis: Hackett Publishing Company, 2003), 136.

World, took place under the sanction of various papal bulls proclaiming a doctrine of “discovery.” This doctrine, and the ideological defenses it generated as the conduct it sanctioned came under sharp criticism, led to a pattern of deliberate doubling down on moral depravity that is one of the central characteristics of modern society for those with eyes to see the dynamics involved.⁴⁸ Perceiving these dynamics – perceiving what has been obscured behind the concepts and mythologies of “progress” – is not an easy task, particularly among those who believe that their ancestors’ discovered new lands in spite of the fact that these lands were already inhabited.

The doctrine of Christian discovery led directly to chattel slavery and the trans-Atlantic slave thefts as well as to numerous land thefts and genocides.⁴⁹ The defense of this grotesque misconduct gave birth, in turn, to racism and contributed to the emergence of nationalism as the form of consciousness characteristic of modern society.⁵⁰ The opposition to eurochristian brutality, for its part, together with the revelations of the very different ways of being in the world of Native peoples, also flowed into the rise of nationalism and of what would become “liberal democracy.”

In his *Second Treatise of Civil Government*, in 1690, John Locke expressed the view that “in the beginning, all the world was America.”⁵¹ Nearly two centuries earlier, in 1516, Sir Thomas More may well have borrowed from an early manuscript account of the New World in developing his *Utopia*.⁵² The influence of Indigenous thinking on the “Enlightenment” is a theme that David Graeber and David Wengrow have addressed at some length in *The Dawn of Everything*.⁵³

But in the words of *Dum Diversas* in 1452, and *Romanus Pontifex* in 1455, King Alfonso V of Portugal and his descendants were authorized to “search out” and “enslave in perpetuity” all “Saracens,” “pagans,” and “other enemies of Christ wheresoever placed.”⁵⁴ Following this, in order “that barbarous nations may be overthrown and brought to the faith,” various papal bulls sanctioned Spain’s invasion of the so-called New World, somehow allegedly giving to Spain’s monarchs, Ferdinand and Isabella: “the aforesaid countries and islands thus unknown and hitherto discovered by your envoys and to be discovered hereafter, provided however they at no time have been in the actual temporal possession of any Christian owner, together with all their dominions, cities, camps, places, and villages, and all rights, jurisdictions, and

⁴⁸ For illustrations of what I call “deliberate doubling down on moral depravity” in the context of race and racism, see Denise Ferreira da Silva, *Toward a Global Idea of Race* (University of Minnesota Press, 2007).

⁴⁹ Newcomb, Pagans in the Promised Land, Willie James Jennings, *The Christian Imagination: Theology and the Origins of Race* (Yale University Press, 2010).

⁵⁰ On the emergence of racism and nationalism, see also Silva, *Toward a Global Idea of Race*.

⁵¹ John Locke, *Second Treatise of Civil Government* (1690), chap. 5, sec. 49, https://www.gutenberg.org/files/7370/7370-h/7370-h.htm#CHAPTER_V (accessed November 20, 2024).

⁵² See Victor N. Baptiste, *Bartolome de Las Casas and Thomas More’s Utopia* (Culver City, CA: Labyrinthos, 1990).

⁵³ David Graeber and David Wengrow, *The Dawn of Everything: A New History of Humanity* (New York: Farrar, Straus and Giroux, 2021).

⁵⁴ The Bull, *Romanus Pontifex*, January 8, 1455, quoting the Bull, *Dum Diversas* of June 18, 1452, Frances Gardiner Davenport, ed., *European Treaties Bearing on the History of the United States and its Dependencies to 1648* (The Carnegie Institution, 1917), 23.

appurtenances of the same.”⁵⁵ This was – and its legacies continue to constitute – a profound assault on what I have called global knowledge; a profound assault on Indigenous ontologies, as well as on countless persons and nations.

In response to Las Casas’ criticism, Juan Ginés Sepúlveda, the court historian in mid-sixteenth century Spain, described the Indians of the New World harshly. There are early expressions of both eurochristian nationalism and modern racism in his opposition to Las Casas’ critique. Speaking of the Native peoples, Sepúlveda declared: “In prudence, talent, virtue, and humanity they are as inferior to the Spaniards as children to adults, women to men, as the wild and cruel to the most meek, as the prodigiously intemperate to the continent and temperate, that I have almost said, as monkeys to men.”⁵⁶

The idea that Las Casas knew better was beyond Sepúlveda’s imagination and would have seemed to him an affront to the dignity of the crown and of Spain: “Shall we doubt that those peoples, so uncivilized, so barbarous, so wicked, contaminated with so many evils and wicked religious practices, have been justly subjugated by an excellent, pious, and most just King, such as was Ferdinand and the Emperor Charles is now, and by a most civilized nation that is outstanding in every kind of virtue?”⁵⁷

To the claim that wars of conquest were impeding the progress of Christianity because the Indians came to hate those who did them harm, Sepúlveda replied, “the madman also hates the doctor who cures him, and the unruly boy hates the teacher who punishes him, but this fact does not negate the usefulness of one nor the other, nor should it be abandoned.”⁵⁸

The ongoing process of seeking to “teach” or “cure” the Native peoples with the force and violence that Sepúlveda and the papal bulls championed was, as Steve Newcomb has noted – and, to a considerable extent, still is – a process of seeking to strip them of their original free and independent existence, to deny them their sovereignty, to steal their lands, to force them to work, and to force baptism and “cultural conversion” upon them under conditions of torment and misery beneath the incessant and cruel demands of states claiming to be sovereign over them.

We live in a world in which “sovereignty” and “self-government” are widely conceived (wrongly) in terms of efforts to maintain domination – to maintain effective control of population and territory and with them “national security” – rather than in terms of efforts to maintain right relations with the Earth and her inhabitants through respectful, reciprocal, trustworthy, and consensual conduct towards all life in accord with an already existing balance and harmony and abundance in the cosmos. The gulf between these two perspectives is another way of describing the global great divide in world politics.

No nation wishes to be ruled over by a foreign state, but to emphasize the “choice” made by a national who is a “ruler” as a manifestation of a nation’s “will” – to emphasize that “choice”

⁵⁵ The Bull, *Inter Caetera*, May 3, 1493, The Bull, *Romans Pontifex*, 61-62.

⁵⁶ Quoted in Lewis Hanke, *All Mankind is One* [1959], (Northern Illinois University Press, 1974), 84.

⁵⁷ Quoted in Lawrence A. Clayton, *Bartolomé de las Casas and the Conquest of the Americas*, (Malden, MA: John Wiley and Sons, 2011), 134.

⁵⁸ Juan Ginés Sepúlveda, *Twelve Point Response to Bartolomé de las Casas*, text in Kris Lane, ed., *Defending the Conquest: Bernardo de Vargas Machuca’s Defense and Discourse of the Western Conquests*, trans. Timothy F. Johnson (University Park, PA: Pennsylvania State University Press, 2010), 51.

and that “will” as the heart of what is meant by sovereignty – rather than to emphasize the responsibilities of the people in their entirety under an international legal and moral order, as in Wilsonian democratic jurisprudence, is a profound mistake. Even a Wilsonian understanding of sovereignty, however, is far removed from what sovereignty means within the context of more genuine forms of self-government. Sovereignty, for those who seek to live “with the Earth,” rather than to dominate Her – sovereignty for those with creational identities – is all about maintaining right relationships through respectful, reciprocal, trustworthy, and consensual conduct in accord with a harmony and a balance and an abundance that is given by Nature and our interconnectedness and not in any way created, maintained, or developed by authority (whether “religious” or “secular”).

Specific legal reforms that would help the American people and the peoples of the Native Nations live together with and on this land in a good way, as Susan Raffo puts it, are a practical research interest of mine.⁵⁹ What moves me most in this regard is the study of the views of Native scholars and activists, particularly those calling for an end to the United States’ spurious claim of a “right” of domination over the Native Nations and their lands.

I have been particularly impressed in this regard with the Yakama Nation’s amicus brief in *Washington State Department of Licensing v. Cougar Den* (2018) as well as with such classics as the Cherokee Nation’s bill in *Cherokee Nation v. Georgia* (1831). These works are often expressed in “western” concepts and language so as to make their thinking clear to an American audience that has yet to realize how much the American people themselves would benefit from thinking in terms of how best to care for the whole that embraces all life, beginning by listening to the peoples of the Native Nations as to how they understand the Earth and Her law.

At the very beginning of their bill before the Supreme Court in 1831, the Cherokee Nation made intellectual mincemeat of the idea that “discovery” or “conquest” had any bearing on their situation and their rights:

Respectfully complaining, show unto your honours, the Cherokee nation of Indians, a foreign state, not owing allegiance to the United States, nor to any state of this union, nor to any other prince, potentate, or state, other than their own: That, from time immemorial, the Cherokee nation have composed a sovereign and independent state, and in this character have been repeatedly recognized, and still stand recognized by the United States, in the various treaties subsisting between their nation and the United States. That long before the first approach of the white men of Europe to the western continent, the Cherokee nation were the occupants and owners of the territory on which they now reside; deriving their title from the Great Spirit, who is the common father of the human family, and to whom the earth belongs. That on this territory they and their ancestors, composing the Cherokee nation, have ever been, and still are, the sole and exclusive masters, and governed, of right, by no other laws, usages and customs, but such as they have themselves thought proper to ordain and appoint.⁶⁰

The argument that the Cherokee Nation made was valid then and remains valid now. This is the argument that the Cherokee Nation’s treaty-rights as an independent and sovereign state

⁵⁹ <https://www.susanraffo.com/>

⁶⁰ “The Bill Filed on Behalf of the Cherokee Nation vs. The State of Georgia,” in Richard Peters, *The Case of the Cherokee Nation Against the State of Georgia* (Philadelphia: James Kay, 1831), 3ff.

should be respected as a matter of *American* constitutional law. That argument is at one with the argument made by the Yakama Nation in 2018, in an amicus brief, in the case of *Washington State Department of Licensing v. Cougar Den, Inc.*, calling on the Supreme Court to “repudiate the doctrine of Christian discovery and its racist foundations as the basis for federal Indian law.”⁶¹ Noting that the true foundation of the United States’ relations with the Yakama Nation is a treaty, the Yakama Nation charged the courts of the United States with systematically attempting to undermine the Yakama Nation’s treaty rights by imposing an imaginary prior relationship sourced in the doctrine of “Christian discovery.”⁶² The Supreme Court, the Yakama Nation argued, has “judicially manufactured an extra-constitutional congressional plenary authority to abrogate treaties and regulate Native Nations. This manufactured authority rests on the false assertion that our sovereignty and free and independent existence were ‘necessarily diminished’ upon Christian European arrival on the North American continent.”⁶³

Arguments over Genocide: The War of Words in the Congress and the Supreme Court over Cherokee Removal is a recent book of mine that addresses these issues. Much of the language and evidence of this essay is drawn from that book. Like the Yakama Nation’s amicus brief – and like Steve Newcomb’s *Pagans in the Promised Land* and Peter d’Errico’s *Federal Anti-Indian Law* before it – my book traces the United States’ spurious claim to a “right” to exercise domination over the lands and peoples of the Native Nations to the assertions and arguments in the so-called “Marshall trilogy” of early nineteenth century United States Supreme Court decisions. This trilogy makes a claim for an “ultimate dominion” in the United States rooted in the doctrine of Christian discovery in *Johnson v. McIntosh* in 1823 and an equally spurious subsequent claim for an American “sovereignty and dominion” in *Cherokee Nation v. Georgia* in 1831 that seems to rely on the alleged virtue of a self-appointed “guardian”-to-“ward” relationship between the United States and the peoples of the Native Nations – what is nowadays referred to as a “trust relationship” – that, ironically, appears to have been adopted by the Supreme Court in order to avoid opposing the Trail of Tears.

The “trust” in any *treaty relationship* is the trust on both sides that the treaty will be adhered to. This is precisely what the “trust relationship” denies whenever the United States wishes to deny it. In other words, “plenary power” is rooted also in the way the Supreme Court covertly sanctioned the Trail of Tears in direct violation of the Constitution (while simultaneously disguising its illegal misconduct by denying the state of Georgia the right to unilaterally commit genocide in *Worcester v. Georgia* in 1832).

The tradition in American jurisprudence that is most open to the kinds of legal reforms that I consider a necessary minimum – worthy of further investigation and refinement prior to implementation – is the tradition represented by the constitutional framer, James Wilson, with

⁶¹ On Writ of Certiorari to the Supreme Court of Washington, Brief of Amicus Curiae Confederated Tribes and Bands of the Yakama Nation in Support of Respondent, No. 16-1498, at 6, *Washington State Dept. of Licensing v. Cougar Den, Inc.*, 188 Wash. 2d 55, aff’d, 392 P.3d 1014 (2018), <https://www.supremecourt.gov/DocketPDF/16/1498/64580/36893.pdf> (accessed July 29, 2020).

⁶² Brief of Amicus Curiae Confederated Tribes and Bands of the Yakama Nation in Support of Respondent, No. 16-1498, at 6, p. 5. See also *Johnson v. McIntosh*, 21 U.S. 543, 574–77, 587 (1823).

⁶³ Brief of Amicus Curiae Confederated Tribes and Bands of the Yakama Nation in Support of Respondent, No. 16-1498, at 6. The Yakama Nation is here quoting *Johnson v. McIntosh*.

his vision of a transcendental moral and legal order to which the American people in their entirety are answerable. Had Wilson’s vision been more deeply embedded in the social self-understanding of the American people, it might well have given rise to a more viable political order – at least to a far preferable kind of democracy than the one that emerged – even while still resting on a concept of benevolent authority.

In a famous political pamphlet in 1774, Wilson declared that “All men are, by nature, equal and free” that “no one has a right to any authority over another without his consent” and that “all lawful government is founded upon the consent of those who are subject to it.”⁶⁴ Wilson recognized that the Native Nations had never consented to be governed by the United States and that the United States therefore had, as he told the continental congress in 1776, “no right” over them.⁶⁵ Explaining the intentions behind what I have called the Treaty Supremacy Clause in the Pennsylvania ratifying convention in 1787, Wilson declared: “This clause, sir, will show the world that we make the faith of treaties a constitutional part of the character of the United States; that we secure its performance no longer nominally, for the judges of the United States will be enabled to carry it into effect, let the legislatures of the different states do what they may.”⁶⁶

Wilson was a key member of the committee of detail in the constitutional convention who ensured that the language of Article III, Section 2 would guarantee that the original jurisdiction of the Supreme Court would extend to “all cases” arising under a treaty in which a state of the Union was party to the case. The contrary position, particularly as articulated by John Marshall in dicta in *Cohens v. Virginia* in 1821, and perhaps tacitly in *Cherokee Nation*, was unpersuasive to Justice Stephen Breyer and is unpersuasive to me.⁶⁷ As law professor James E. Pfander notes, it makes a “hash” out of the framers’ intentions and the clear meaning of the text.⁶⁸ That Marshall’s position in *Johnson* and in *Cherokee Nation* is still ascendant in the law perhaps reflects the absence of the discomfort that would be felt if it was widely recognized that the Supreme Court had covertly sanctioned a series of genocides and land thefts primarily by unilaterally changing the name of one of the parties to a treaty – as if calling the Cherokee Nation “domestic” and “dependent” rather than a “foreign state” should have had any effect at all on their constitutional right to their treaty-guaranteed dominion. Marshall’s “hash,” we will examine at greater length later.

That all a foreign state in the sense of the Constitution was to the framers was another state possessing dominion – and that the Indian Tribes qualified as such – is clear from President

⁶⁴ James Wilson, “Considerations on the Nature and Extent of the Legislative Authority of the British Parliament,” 1774, in Hall and Hall, eds., *The Collected Works of James Wilson*, vol. 1, 4–5.

⁶⁵ James Wilson, Notes of Debate, July 26, 1776, Journals of the Continental Congress, vol. 6 (1774–1789), 1078.

⁶⁶ “Remarks of James Wilson in the Pennsylvania Convention to Ratify the Constitution of the United States, 1787,” in Hall and Hall, eds., *The Collected Works of James Wilson*, vol. 1, 246.

⁶⁷ “Strangely absent from Chief Justice Marshall’s opinion is an explicit discussion of a related (but different) jurisdictional claim that one of the Cherokee’s lawyers had made. The first paragraph of art. 3 says the ‘judicial power of the United States’ also shall extend to cases ‘arising under... Treaties.’ The Cherokees had argued that their case ‘arises under a treaty.’ Consequently paragraph one, they said, extended the federal judicial power to the case; paragraph two provides original jurisdiction in the Supreme Court. Chief Justice Marshall did not describe the flaw, if any, in this jurisdictional logic.” Stephen Breyer, “The Cherokee Indians and the Supreme Court,” *The Georgia Historical Quarterly* 87, no. 3/4 (Fall/Winter 2003), 416.

⁶⁸ Pfander, “Rethinking the Supreme Court’s Original Jurisdiction in State-Party Cases,” 614.

George Washington’s successful appeal to the Senate of the United States in 1789 to establish the practice of ratifying treaties made with the Native Nations: “It doubtless is important that all treaties and compacts formed by the United States with other nations, whether civilized or not, should be made with caution and executed with fidelity.”⁶⁹ The issue, in other words, was simply one of good faith versus bad faith: were treaties with a Native people worth the paper they were printed on? The issue was not obscure to the Senate which agreed to Washington’s appeal.

Had the constitutional convention wished to exclude treaties with the Native Nations from the Treaty Supremacy Clause, it would have been simple to do so. The initial language proposed spoke only of treaties that were “ratified” which would have sufficed for that purpose as none of the treaties with the Native Nations had traditionally been ratified.⁷⁰

To deny the applicability of the Treaty Supremacy Clause to treaties with the Native Nations is to claim that those in the ratification debates over the Constitution who were opposed to this clause *because* of its support for Indian rights were foolishly afraid that judges would take their oaths seriously. In an article in the *Virginia Independent Chronicle* of 18 June 1788 – under the pseudonym “Many” – Arthur Campbell specifically questioned the arguments of those asserting that “*treaties* should be made part of the *supreme* law of the land.” Campbell’s very criticism, however, is evidence of the fact that the Treaty Supremacy Clause was seen as applying to treaties with the Native Nations:

Since the year 1776, the United States, by commissioners acting under their authority, have made a variety of treaties, with different nations of Savages; some of them if considered as law, will destroy the private rights of individuals without a hearing; infringe the sovereignty of States, are contradictory with one another; and in not a few instances manifestly unjust. Can the Indians give us constitutional security for the observation of stipulations on their part? What embarrassments must the Judges of the federal courts be under, when they come to pronounce, what is *the supreme law of the land*. They are either to be accessories to a multiplicity of wrongs, or endure the imputation of trifling with the obligations of a solemn oath.⁷¹

In interpreting the American Constitution it is essential to understand – as the members of the Supreme Court have not since 1823 – that one must choose between the interpretive framework of the revolutionary jurisprudence of James Wilson and his allies that underlies all of the American written constitutions and, especially, the first of these – the Declaration of Independence – and the interpretive frameworks of their reactionary rivals in the states and among the “federalists.” In other words, the interpretive framework of the advocates of “states’ rights” and the interpretive framework of John Marshall and his allies who, in effect, nationalized the “states’ rights” position. While it is easy to appreciate the tension between the

⁶⁹ George Washington, Message to the Senate of September 17, 1789 Regarding Treaties with Native Americans, http://avalon.law.yale.edu/18th_century/letm1790.asp (accessed September 22, 2016).

⁷⁰ Luther Martin, motion of July 17, 1787, in Max Farrand, ed., *The Records of the Federal Convention of 1787* [1911], rev. ed., vol. 2 (New Haven: Yale University Press, 1966), 28–29.

⁷¹ *The Documentary History of the Ratification of the Constitution: Virginia*, vol. 10, T 1639, <http://digioll.library.wisc.edu/cgi-bin/History/History-idx?type=gto&id=History.DHRCv10&size=M&submit=Go+to+page&page=1639> (accessed August 21, 2020).

“federalists” and the advocates of “states’ rights,” it is essential to recognize that both are bitterly opposed to Wilsonian democratic jurisprudence.

At a deeper level, one could argue that every proper interpretation of any American constitution is bound to comply with the international laws and usages of this continent that preceded the eurochristian invasion. One could argue that these laws and usages are the true constitution of this land – of which all of the American constitutions are poorly rooted expressions that have so far failed to guarantee equal belonging and equal rights to all – and that the true constitution of this land is what should govern.

Brother Gabriel Sagard’s early seventeenth century account of the Wendat, a work that became a bestseller in Europe cited by both Locke and Voltaire, is one of many that David Graeber and David Wengrow review in *The Dawn of Everything*. Consider the legal principles implicit in the views Sagard and others reported upon as a window onto our true constitution: “They reciprocate hospitality and give such assistance to one another that the necessities of all are provided for without there being any indigent beggar in their towns and villages; and they considered it a very bad thing when they heard it said that there were in France a great many of these needy beggars, and thought this was for lack of charity in us, and blamed us for it severely.”⁷² The Jesuit missionary Le Jeune wrote of the Montagnais-Naskapi in 1642: “They imagine that they ought by right of birth, to enjoy the liberty of wild ass colts, rendering no homage to anyone whomsoever, except when they like. They have reproached me a hundred times because we fear our Captains, while they laugh at and make sport of theirs. All the authority of their chief is in his tongue’s end; for he is powerful so far as he is eloquent; and, even if he kills himself talking and haranguing, he will not be obeyed unless he pleases the Savages.”⁷³ Writing of the Wendat in 1648, Father Lallemant noted that “They are free people, each of whom considers himself of as much consequence as the others; and they submit to their chiefs only in so far as it pleases them.”⁷⁴

It is only as Native scholars have addressed the spiritual and ontological foundations of their own societies – as, for example, in *God is Red* by Vine Deloria, Jr. (Dakota) and *Aazheyaadizi: Worldview, Language, and the Logics of Decolonization* by Mark Freeland (Anishinaabe) – that they have begun to become more accessible to academic audiences.⁷⁵ The works of some rare outsiders, such as Marshall Sahlins’ recent *The New Science of the Enchanted Universe*, are also helpful.⁷⁶ In *Radical Wholeness*, Philip Shepherd shows something of how “modern culture” enforces divisions within each of us, and among all of us, depriving our world of the qualities we most want to experience – connection, peace, grace, simplicity, clarity, and the like – all of which arise from a sense of wholeness.⁷⁷ From such a perspective, knowledge and ethics form a

⁷² Quoted in David Graeber and David Wengrow, *The Dawn of Everything: A New History of Humanity*, (Farrar, Straus and Giroux, 2021), 39-40.

⁷³ Graeber and Wengrow, *The Dawn of Everything*, 41.

⁷⁴ Ibid., 44.

⁷⁵ Vine Deloria Jr., *God Is Red: A Native View of Religion*, 3rd ed. (Putnam, 2003); Mark D. Freeland, *Azheyaadzi: Worldview, Language, and the Logics of Decolonization* (Michigan State University Press, 2021).

⁷⁶ Marshall Sahlins, *The New Science of the Enchanted Universe: An Anthropology of Most of Humanity* (Princeton University Press, 2022).

⁷⁷ Philip Shepherd, *Radical Wholeness: The Embodied Present and the Ordinary Grace of Being* (North Atlantic Books, 2017).

unity in contrast with the allegedly interchangeable character of power and knowledge in “modern culture.”⁷⁸

Benjamin Franklin saw something of the truth of the accomplishments of the peoples of the Native Nations – and, in particular, the importance of treaty law among them – in 1783. This respect for treaty law is one of the many aspects of the unwritten constitution of this continent that the United States has most severely and despicably violated.

Savages we call them, because their manners differ from ours, which we think of as the Perfection of Civility; they think the same of theirs.... Having frequent Occasions to hold public Councils, they have acquired great Order and Decency in conducting them. The old men sit in the foremost Ranks, the Warriors in the next, and the Women and Children in the hindmost. The Business of the Women is to take exact notice of what passes, imprint it in their memories, for they have no Writing, and communicate it to their Children. They are the Records of the Council, and they preserve Tradition of the Stipulations in Treaties a hundred Years back, which when we compare with our Writings we always find exact. He that would speak, rises. The rest observe a profound Silence. When he has finished and sits down, they leave him five or six Minutes to recollect that if he has omitted anything he intended to say, or has anything to add, he may rise again and deliver it. To interrupt another, even in common conversation, is reckoned highly indecent.⁷⁹

Leaving aside, for the moment, the deeper levels of how “the law” is related to who we are (and who we see ourselves as being), it is clear that the American people existed before the Declaration of Independence and before any of the states. According to the text of the Declaration of Independence, the American people were acting under an international moral and legal order that guarantees equal rights to all peoples when they claimed the right to do all of the acts and things “which Independent States may of right do.”⁸⁰ Nowhere in that first written constitution – despite the deplorable prejudice of the phrase “merciless Indian savages” – are genocide or even slavery sanctioned as neither are compatible with what states “may of right do” under the vision of natural law that informed the law of nations’ principles articulated by Las Casas and Wilson.

Even after the reactionary Articles of Confederation and the compromise Constitution of 1789 had been adopted – in the year 1796 – Connecticut Congressman James Hillhouse could address the House of Representatives in the following language: “The first principle that is laid down in the rights of man, is, that all men are born free and equal; it does not say all *white* men. He did not believe, he said, that the House would ever admit so absurd a doctrine, as that the different shades in a man’s complexion would increase or diminish his natural rights.”⁸¹

James Wilson, and the more “progressive” of the framers generally, did make horrible compromises over slavery. But far from being concerned only with white male property

⁷⁸ Vine Deloria, Jr., “Western civilization, unfortunately, does not link knowledge and morality but rather, it connects knowledge and power and makes them equivalent.”

⁷⁹ Benjamin Franklin, “Remarks Concerning the Savages of North-America” (ca. 1783), in Edmund S. Morgan, ed., *Not Your Usual Founding Father: Selected Readings from Benjamin Franklin* (New Haven: Yale University Press, 2006), 52–53.

⁸⁰ The Declaration of Independence. <https://www.archives.gov/founding-docs/declaration-transcript> (accessed November 14, 2020).

⁸¹ James Hillhouse, April 10, 1796, *Annals of Congress*, House of Representatives, 4th Congress, 1st Session, 1084–1085.

owners, Wilson spoke explicitly of the need to cultivate the power of moral abstraction whereby the inhabitants of the whole earth become the objects of the warmest spirit of benevolence.⁸² This was, it is true, still a pale imitation of the widespread Indigenous respect – then and now – for “all our relations,” but it was at least as “progressive” as anything non-Natives in the United States currently have on offer: “All will receive from each, and each will receive from all, mutual support and assistance,” Wilson maintained: “mutually supported and assisted, all may be carried to a degree of perfection hitherto unknown; perhaps, hitherto not believed.”⁸³

The first and most necessary duty of nations, as well as of men, Wilson wrote, was to do no harm. But they were also commanded to do good to one another. Sociability was part of the law of nature for nations as well as individuals. The expression natural enemies, which had helped spill oceans of blood, was an unnatural expression: “for natural enmity forms no title in the genuine law of nations, part of the law of nature. It is adopted from a spurious code.”⁸⁴

It may, perhaps, be uncommon, but it is certainly just, to say that nations ought to love one another. The offices of humanity ought to flow from this pure source. When this happily is the case, then the principles of affection and friendship prevail among states as among individuals: then nations will mutually support and assist each other with zeal and ardour; lasting peace will be the result of unshaken confidence; and kind and generous principles, of a nature far opposite to mean jealousy, crooked policy, or cold prudence, will govern and prosper the affairs of men.⁸⁵

The reactionary forces that sought to gain the ascendancy with the Articles of Confederation claimed, implicitly, a very different understanding of, and a very different origin story for, the alleged sovereignty of their states. As far as they were concerned, it was the magic “Christian” eyes of the “discoverers” that gave the English King the ability to issue charters with validity and it was the boundaries of those charters that “contained” the sovereignty “inherited” by each state by revolution. The fact that there was no such thing as untrammelled sovereignty under the British Constitution did not prevent the “states’ rights” reactionaries from maintaining that precisely such had somehow been wrested away from the King by each of their states during the revolutionary war. Far from being answerable to an international moral and legal order, as “we the people” are in Wilsonian jurisprudence, the states were answerable to no higher authority than they acknowledged in the jurisprudence of the advocates of “states’ rights,” a jurisprudence that would provide strong and increasing support for slavery, at least in the South.

By adopting “Christian” discovery in 1823, John Marshall’s Supreme Court in effect claimed that sovereignty derived not from the people, under an international moral and legal order that guaranteed all peoples their rights, but rather derived from magic “Christian” eyes setting sight on the land. To be sure, as far as Marshall was concerned, sovereignty belonged to the United States, rather than to the individual states, but the United States was legally answerable to no

⁸² Wilson, “Chapter IV. *Of the Law of Nations*,” 543–44.

⁸³ James Wilson, “Chapter III. *Of the Law of Nature*,” in Hall and Hall, editors, *The Collected Works of James Wilson*, Vol. 1, at 542.

⁸⁴ Wilson, “Chapter IV. *Of the Law of Nations*,” 539–545.

⁸⁵ *Ibid*, 541–542.

higher authority. In Wilsonian jurisprudence, to reiterate the contrast, the United States was legally answerable to the American people who were themselves answerable to the law of nations and, above that, to the law of nature and of nature’s God. Sovereignty for James Wilson resided with the people and all governments derived such just powers as they exercised from the consent of the governed under an international moral and legal order that guaranteed the same rights to all peoples, including the peoples of the Native Nations. And the Supreme Court was bound under the Constitution by treaty law, and by the law of nations, to uphold the obligations to others that existed in this higher law – to administer this law for their benefit in American courts whenever their cause was just.

Rather than work within a Wilsonian democratic framework, or for that matter even within a framework influenced by the common “Enlightenment” revulsion at the extreme predator brutality of Spanish colonization and its twisted justifications, John Marshall reached back over centuries in an incredibly reactionary maneuver to found U.S. property law in *Johnson v. McIntosh* on the doctrine of Christian discovery. In this way, the treaty-guaranteed dominion of the Cherokee Nation, Choctaw Nation, Muscogee Nation, Chickasaw Nation (and many others) was reduced to a mere right of “occupancy” by a unanimous (although profoundly mistaken) United States Supreme Court.⁸⁶

The closest anyone appears to have come to directly setting Marshall straight in his lifetime was Supreme Court Associate Justice Smith Thompson in his dissent in *Cherokee Nation v. Georgia*. The Cherokee Nation’s rights of property, Thompson observed, are guaranteed to it by several treaties. “It is immaterial whether this interest is a mere right of occupancy, or an absolute right to the soil. The complaint is for a violation, or threatened violation, of the possessory right.”⁸⁷ The treaty guarantee is to the Cherokee people in their national capacity. “Their land is held in common, and every invasion of their possessory right is an injury done to the nation.”⁸⁸ That the Cherokee Nation have, by virtue of these treaties, an exclusive right of occupancy of the lands in question, and that the United States are bound, under their guarantee to protect the nation in the enjoyment of such occupancy, was undoubtedly the case. “The laws of Georgia set out in the bill, if carried fully into operation, go the length of abrogating all the laws of the Cherokees, abolishing their government, and entirely subverting their national character.”⁸⁹

Justice Thompson concluded that the Cherokee people composed a foreign state within the sense of the constitution, constituted a competent party to maintain a suit against the state of Georgia, and that their bill presented a case for consideration to which an injunction was a fit and proper response that should be awarded to prevent the further exercise of Georgian laws violating the laws of the United States and treaties made under their authority.⁹⁰ In other words, the Cherokee Nation had a treaty-guaranteed dominion that the United States – and

⁸⁶ Stuart Banner, *How the Indians Lost Their Land: Law and Power on the Frontier* (Cambridge: Harvard University Press, 2005), 187. Text of treaties available at: Treaty with the Cherokee, July 2, 1791, 7 Stat. 39; Treaty with the Creek, 7 Stat. 39 (1790); Treaty with the Choctaw, Jan. 3, 1786, 7 Stat. 21; Treaty with the Chickasaw, Jan. 10, 1786, 7 Stat. 24. See also *Johnson v. McIntosh*, 21 U.S. 543, 574–577, 587 (1823).

⁸⁷ 30 U.S. (5 Pet.) 1, at 70 (1831).

⁸⁸ 30 U.S. (5 Pet.) 1, at 74 (1831).

⁸⁹ 30 U.S. (5 Pet.) 1, at 75 (1831).

⁹⁰ 30 U.S. (5 Pet.) 1, at 80 (1831).

each individual state – was bound to respect and not merely some right of “occupancy” that could simply be “extinguished” by the United States as Marshall deluded himself and others into believing, or at least into pretending to believe.

According to Marshall’s opinion in *Johnson*, the mere presence of representatives of a “Christian people” on this side of the Atlantic “necessarily diminished” the sovereignty of the “heathens” – the Native peoples – and gave an “ultimate dominion” to the discoverers whereby they claimed a “title” over the land and a “right” to dominate the Native peoples – a “degree of sovereignty” over them – to be in their government.⁹¹

Ignoring the requirements that the law of nations imposed when it came to either “purchase” or “conquest” as a means of acquiring territory – namely a treaty signed in good faith in the first case and a just cause in the second – Marshall suggested that “discovery” alone was sufficient to employ either purchase or conquest to “extinguish” the title of the Native Nations.⁹² Even Marshall would have flinched at the idea that one could turn on a dime and without a just cause seek to conquer a people with whom a treaty of friendship had been signed after they had agreed to a cession of land.⁹³ But this was precisely what the United States would proceed to do again and again in the genocides of the 1830s after Marshall provided covert sanction for the crime in *Cherokee Nation v. Georgia* and *Worcester v. Georgia* on the basis of the “ultimate dominion” that Marshall had created out of thin air from the doctrine of Christian discovery in *Johnson* in direct violation of the Treaty Supremacy Clause along with a pretend “right” to enter the lands of the Native Nations without their permission that Marshall fabricated in *Worcester*.

In a famous sentence in *Johnson*, Marshall claimed that “Conquest gives a title which the courts of the conqueror cannot deny.”⁹⁴ In fact, far from being unable to deny a fraudulent claim of conquest on the part of the “conqueror,” the Treaty Supremacy Clause of the Constitution mandated that the judges of the Supreme Court adopt such a position of denial toward any claim at odds with America’s treaty obligations to the Native Nations. The heart of Marshall’s fraudulent claim in *Johnson* – a claim adopted in violation of his oath of office – was exclusively a product of Marshall’s turgid imagination without foundation in law or fact.⁹⁵ This was the assertion that “discovery” somehow is “conquest” – that “discovery” somehow “gave also a right to such a degree of sovereignty as the circumstances of the people would allow them to exercise.”⁹⁶ In other words, that the invaders had a “right” to dominate subject only to a Native capacity for resistance with their “degree of sovereignty” (an absurd and self-contradictory concept) varying accordingly with the strength of that resistance. Deliberately lying about the past – and I explore and document Marshall’s mendacity at some length in my book – Marshall paved the way for repeated genocides and land thefts. Nothing of the Trail of Tears, and none of the so-called “Indian Wars,” could have taken place without the twisted legal framework that

⁹¹ 21 U.S. at 574-77, 87 (1823). See also Newcomb, *Pagans in the Promised Land*, especially 73-102.

⁹² Newcomb, *Pagans in the Promised Land*, 73-102.

⁹³ John Marshall to Joseph Story, October 12, 1828, in Hobson, ed., *The Papers of John Marshall*, vol. 12, 178.

⁹⁴ 21 U.S. 543, 587-591 (1823).

⁹⁵ Newcomb, *Pagans in the Promised Land*, 103; Stuart Banner, *How the Indians Lost Their Land*, 187.

⁹⁶ 21 U.S. 543, 559-592 (1823).

Marshall and his allies established to deny the peoples of the Native Nations their constitutional rights.

Perceiving the kind of make-believe at the heart of Georgia’s “states’ rights” pretensions, one of the lawyers for the Cherokee Nation, William Wirt, lampooned it. He should have done the same with Marshall’s pretensions in *Johnson*. Marshall’s treaty-violating make-believe was no more sound than Georgia’s. Indeed, both rested their pretensions on the same premises. Noting that the first company that crossed the Atlantic under the charter by which Georgia claimed its rights was led by General Oglethorpe, and arrived in 1733, Wirt proceeded to mock Georgia’s pretensions with a telling piece of authentic history drawn from a book that Marshall himself had authored. Wirt could and should have used it against Marshall’s pretensions directly:

According to the present claim of Georgia, all the lands within the limits of that charter belonged to these colonists; and they had nothing more to do than to take possession and to claim the allegiance of the Indians as a conquered people, and a part of the subjects of his Britannic majesty. Had any such arrogant pretension been set up, *this conquered people*, the lords of the forest, could, and probably would have crushed the puny colony with as much ease as they could have crushed the serpents’ eggs around them. But General Oglethorpe understood the charter as his sovereign understood it. “A treaty was held with the Creek Indians, to whom the lands were admitted to belong, and the cession of a considerable tract was obtained from them.” 1 Marshall’s *Life of Washington*, 226.⁹⁷

Marshall must have been stung by this indirect evidence of his dishonesty with regard to treaties with the Native Nations – and the reason for them in the need to acquire land lawfully from its rightful owners – for in a subsequent edition of the work the phrase: “to whom the lands were admitted to belong” was dropped from Marshall’s text.⁹⁸

Unfortunately, neither Wirt nor the Cherokee Nation’s other lawyer, John Sergeant, subjected Marshall’s pretensions in *Johnson* to the analysis and the skewering they deserved. In a letter to James Madison of 5 October 1830, Wirt did indicate that he thought the doctrine of *Johnson* “the strangest absurdity. It is said they have no other title than that of having chased their game over them.”⁹⁹ But he did not demolish this absurdity before Marshall’s face. He was too polite to hammer on the glass jaw of that doctrine until it shattered. That Wirt had the knowledge to pursue such a pugilistic approach is clear, especially from some of his official opinions as the Attorney General of the United States in the 1820s. In one official opinion, in 1828, he dealt with the “reasoning” expressed by the state of Georgia as it sought to deny the obligations of a treaty on the grounds that the Native Nations were dependent. His critique applies perfectly to John Marshall’s “reasoning” as well. Here is Wirt demolishing such despicable foolishness:

If they are independent for the purpose of treating, they have all the independence that is necessary to the argument. If they are competent parties to this species of contract called a treaty, the construction of the contract must be governed by the same rules of

⁹⁷ *Argument of Mr. Wirt*, in Peters, *The Case of the Cherokee Nation*, 116.

⁹⁸ Compare: John Marshall, *Life of Washington*, vol. 1 (C.P. Wayne, 1805–07), 308–09; John Marshall, *Life of Washington*, vol. 1 (The Citizens’ Guild, 1926), 252.

⁹⁹ Quoted in Banner, *How the Indians Lost Their Land*, 189.

reason which govern the contracts of all other competent parties; for the rules which govern the construction of treaties are not *technical* and *artificial*, as seems to be assumed by the Georgia memorial; on the contrary, they are the mere dictates of reason and common sense, which apply to the transactions of all rational beings, of whatever nation, color, or religion. The point, then, once conceded, that the Indians are independent to the point of treating, their independence is, *to that purpose*, as *absolute* as that of any other nation. Being competent to bind themselves by a treaty, they are equally competent to bind *the party who treats with them*. Such a party cannot take the full benefit of the treaty with the Indians, and then deny them the reciprocal benefits of the treaty, on the ground that they are not an independent nation to all intents and purposes. It would require no technicality to perceive and to expose the injustice of such an attempt. It would lie open to the reprehension of the plainest understanding.”¹⁰⁰

Like so many with an aggressive and reprehensible intention toward others, Marshall projected the aggression he felt onto these others and then presented himself and what he saw as his side as the ones being threatened. The Tribes of Indians inhabiting this country during the period of British colonial rule, according to Marshall’s opinion in *Johnson*, were fierce savages whose occupation was war and whose subsistence was drawn chiefly from the forest:

To leave them in possession of their country was to leave the country a wilderness; to govern them as a distinct people was impossible because they were as brave and as high spirited as they were fierce, and were ready to repel by arms every attempt on their independence. What was the inevitable consequence of this state of things? The Europeans were under the necessity either of abandoning the country and relinquishing their pompous claims to it or of enforcing those claims by the sword, *and by the adoption of principles* adapted to the condition of a people with whom it was impossible to mix and who could not be governed as a distinct society, or of remaining in their neighborhood, and exposing themselves and their families to the perpetual hazard of being massacred.¹⁰¹

Marshall ignored the possibility that treaties with the Native Nations could serve as a path to friendship and coexistence. To the end of his life, he failed to acknowledge, much less explain, how the Native Nations, in his own words, were “fierce savages” in his account of the colonial past in *Johnson* and sovereign equals in the treaty with the Delaware in 1778 that he correctly cited in *Worcester*.¹⁰² As for the “principles” he advocated in *Johnson*, he did not spell out what these “principles” were, simply noting later in that opinion that they included a “rule” which somehow had the effect of “converting” discovery into conquest: “That law which regulates and ought to regulate in general the relations between the conqueror and conquered was incapable of application to a people under such circumstances. The resort to some new and different rule better adapted to the actual state of things was unavoidable.”¹⁰³ The “new and different rule” that Marshall came up with was “the pretension of converting the discovery of

¹⁰⁰ William Wirt, “Georgia and the Treaty of Indian Spring,” July 28, 1828, in Robert Farnham, *Official Opinions of the Attorneys General of the United States*, vol. 2 (Washington, 1852), 132–33. See also Schwartzberg, *Arguments over Genocide*, especially chapters 4 and 5.

¹⁰¹ 21 U.S. 543, at 590 (1823). Emphasis added.

¹⁰² 21 U.S. 543, at 590 (1823); *Worcester v. Georgia*, 31 U.S. (6 Pet.) 515, 549 (1832).

¹⁰³ 21 U.S. 543, at 591 (1823).

an inhabited country into conquest.”¹⁰⁴ In other words, the true “actual state of things” was that the Native Nations were here first – and in lawful and original possession – and the “new and different rule” was to act towards them with dishonesty, malice, and treaty-violating brutality as if they somehow had been conquered with a glance:

According to the theory of the British Constitution, the royal prerogative is very extensive so far as respects the political relations between Great Britain and foreign nations. The peculiar situation of the Indians, necessarily considered in some respects as a dependent and in some respects as a distinct people occupying a country claimed by Great Britain, and yet too powerful and brave not to be dreaded as formidable enemies, required that means should be adopted for the preservation of peace, and that their friendship should be secured by quieting their alarms for their property.¹⁰⁵

“Quieting their alarms,” although Marshall does not explicitly say so, meant establishing treaties with them; treaties of “friendship” that, in Marshall’s interpretative stance toward treaties, were implicitly all signed in bad faith – adopted for reasons of “national policy” and not in order to acquire land lawfully.¹⁰⁶ In other words, these treaties were not what the Native Nations thought they were and were not really meant to respect these nations’ independence and guarantee their property – far from it – merely to quiet their alarms.

Yet the fact that these treaties existed was a problem for the advocates of genocide who, in the debates in the Congress, could not resort, as Marshall did, to simply ignoring the constitutional obligations these treaties imposed on the United States. Georgia Senator John Forsyth addressed the issue head on with the same logic as Marshall deployed but with a bolder dishonesty than Marshall could muster:

That the President has made, with the advice and consent of the Senate, various contracts with Indians and called them treaties, is not to be denied. That various contracts have been made with Indians, by States and individuals, under the superintendence of the United States, is certain; they have been submitted, too, to the Senate, voted upon as, and have been called, treaties. What I assert is, that these instruments are not technically treaties, supreme laws of the land, superior in obligation to State constitutions and State laws. Can it be believed that the stern jealousy of the State Governments gave to the United States the power to use a miserable fragment of the population of a State, to extend, indefinitely, their authority, and narrow that of the State Government?... How, then, can a contract made with a petty dependent tribe of half starved Indians be properly dignified with the name, and claim the imposing character of, a treaty?¹⁰⁷

It is of limited importance whether the “plenary power” that the United States claims over the Native Nations of much of Turtle Island is seen to derive from the doctrine of “Christian discovery” – as articulated in the assertion in *Johnson v. McIntosh* of an “ultimate dominion” in the United States, and a “necessarily diminished” Native sovereignty, consequent on some

¹⁰⁴ 21 U.S. at 591.

¹⁰⁵ 21 U.S. 543, at 596–97 (1823).

¹⁰⁶ 21 U.S. 543, at 604 (1823).

¹⁰⁷ April 15, 1830, United States Senate, 21st Congress, 1st Session, *Register of Debates*, 336.

representatives of a “Christian people” showing up on this side of the Atlantic – or is seen rather as somehow appearing *sui generis* in the subsequent claim in *Cherokee Nation v. Georgia* that the Native Nations are “completely under the sovereignty and dominion of the United States.”¹⁰⁸ The latter claim being, in effect, a deliberate doubling down on moral depravity after the Cherokee Nation had explicitly criticized the absurdity of the doctrine of discovery.

I do *not* intend to suggest that the doctrine of Christian discovery must be seen as the only possible origin of a politics of domination and dehumanization. But the doctrine of discovery was certainly the source Marshall began his evil work with and from: the foundation for the system to which the Native Nations have been subject since the Marshall trilogy. Clearly, more recent Supreme Court decisions have dropped any reference to “Christianity” from the doctrine of discovery that the Court continues to articulate, and continues to appeal to, as a source of “plenary power” over the Native Nations (by continuing to cite *Johnson* and cases that depend on *Johnson*).

The dishonesty of Marshall’s claim in *Worcester v. Georgia* to have treated the Indians fairly – to have treated them the same as “the other nations of the earth” – is evident in even a cursory examination of *Worcester* in the context of *Johnson* and *Cherokee Nation*.¹⁰⁹ Nothing in *Worcester* repudiated the claim of an “ultimate dominion” or a complete “sovereignty and dominion” over the Native Nations that Marshall had claimed for the United States in the earlier cases; a claim that the United States made with regard to no other nations in the world. Nothing in *Worcester* repudiated Marshall’s claim that the Native Nations were “domestic” and “dependent.” Nothing in *Worcester* respected the right of the Cherokee Nation as an independent foreign state to bring an action in the Supreme Court under its original jurisdiction. Nothing in *Worcester* respected the right of the Cherokee Nation – as a Tribe (a legal entity specifically mentioned in the Constitution) – to maintain an action in the Supreme Court under its original jurisdiction simply because the United States had guaranteed them their dominion as part of the supreme law of the land and that treaty-guaranteed dominion was being violated by a state of the union.

Worcester allowed Marshall – after he had, in effect, repudiated the Treaty Supremacy Clause in *Cherokee Nation* – to pretend to embrace treaties as the supreme law of the land. Here it is essential to stress that Marshall’s claim in *Worcester* is that the Cherokee Nation are at the “rank” of treaty partners and *not* that they have *any* constitutional rights that they can enforce in the courts as a result of their “rank” or as a consequence of the treaty obligations of the United States.¹¹⁰ In a particularly subtle and pernicious violation of the Treaty Supremacy Clause, Marshall claimed that the United States had a right to enter Native Nations, without prior permission by treaty, simply in accordance with “acts of Congress,” even though an official opinion by United States Attorney General William Wirt in 1821 had specifically denied any such power to the United States and proved that it was lacking by a clause in the Treaty of Canandaigua of 11 November 1794 in which the United States had specifically requested and been granted permission to enter the lands of the Seneca in accordance with the treaty.¹¹¹ In

¹⁰⁸ 21 U.S. 543, at 574–77, 587, 30 U.S. (5 Pet.) 1, at 17.

¹⁰⁹ *Worcester v. Georgia* 31 U.S. 515, 559–60 (1832).

¹¹⁰ 31 U.S. 515, at 559–60.

¹¹¹ 31 U.S. 515, at 561.

conclusion, Wirt noted, “there exists no authority to enter upon their lands, for any purpose whatever, without their consent.”¹¹² Indian title had always been held sacred, Wirt insisted: “They do not hold under the States, nor under the United States; their title is original, sovereign, and exclusive.”¹¹³

Marshall’s seemingly innocuous grant of extra-constitutional (really anti-constitutional) authority to Congress to enter Native lands was another insidious maneuver on Marshall’s part. It was a way of covertly asserting sovereignty in the Congress and providing implicit sanction for the Trail of Tears instead of standing up for the Cherokee Nation’s constitutional rights. An additional, unspoken, covert sanction came in the form of tolerance for the use that the Congress made of unconstitutional and genocidal state legislation seeking to destroy the Native Nations. For the majority in the Congress, this state legislation was a form of pressure to get these nations to “agree” to move west.

Georgia Senator John Forsyth was explicit in publicly claiming that his state had a right to destroy the Cherokee Nation without any interference on the part of the United States: “If their separate existence as a tribe is destroyed by State legislative enactments, the control of the Government of the United States, even over the commerce with them is at an end.”¹¹⁴ Marshall acknowledged in a private letter the coercion involved in Georgia’s, Alabama’s, and Mississippi’s anti-Indian legislation and “that Congress completes the coercive measures begun by the states.”¹¹⁵ But he in no way attempted to bring the Congress to adhere to treaties that, according to the Constitution, were part of the supreme law of the land. On the contrary, Marshall championed Congress’ non-existent sovereignty and sought to judicially revise the obvious treaty obligations of the United States in accord with what Marshall thought was Congress’ “will.”¹¹⁶

I noted earlier that Marshall’s dicta as to the Supreme Court’s original jurisdiction in *Cohens v. Virginia* in 1821, is unpersuasive. It is worth observing that Marshall himself did not attempt to appeal to his own dicta from *Cohens* as an explanation for his opinion in *Cherokee Nation*. And it is worth stressing that Justice Joseph Story, who had provided the intellectual basis in *Martin v. Hunter’s Lease* for Marshall’s dicta in *Cohens*, disagreed with Marshall in *Cherokee Nation* and

¹¹² William Wirt, “The Seneca Lands,” April 26, 1821, in Robert Farnham, *Official Opinions of the Attorneys General of the United States*, vol. 1 (1852), 466–67. I am indebted to Peter d’Errico for directing me to this source.

¹¹³ Wirt, “The Seneca Lands,” 466–67.

¹¹⁴ April 15, 1830, United States Senate, 21st Congress, 1st Session, *Register of Debates*, at 336.

¹¹⁵ John Marshall to Edward Everett, June 5, 1830, in Charles F. Hobson, ed., *The Papers of John Marshall*, vol. 11 (Chapel Hill: University of North Carolina Press, 2002), 379.

¹¹⁶ “In a controversy between two nations concerning national boundaries, it is scarcely possible that the courts of either should refuse to abide by the measures adopted by its own government. There being no common tribunal to decide between them, each determines for itself on its own rights, and if they cannot adjust their differences peaceably, *the right remains with the strongest*. The judiciary is not that department of the government to which the assertion of its interests against foreign powers is confided, and its duty commonly is to decide upon individual rights according to those principles which the political departments of the nation have established. If the course of the nation has been a plain one, its courts would hesitate to pronounce it erroneous. We think then, however individual judges might construe the Treaty of St Ildefonso, *it is the Province of the Court to conform its decisions to the will of the Legislature if that will has been clearly expressed*.” *Foster & Elam v. Neilson*, 27 U.S. 253, 306–307 (1829). Emphasis added.

endorsed Smith Thompson’s eloquent and accurate dissent.¹¹⁷ Yet within a couple of years, Story had effectively surrendered his position in this dissent and embraced Marshall’s anti-Wilsonian position writing in his *Commentaries on the Constitution of the United States*: “As infidels, heathens, and savages, they were not allowed to possess the prerogatives belonging to absolute, sovereign, and independent nations. The territory over which they wandered, and which they used for their temporary and fugitive purposes, was, in respect to Christians, deemed, as if it were inhabited only by brute animals.”¹¹⁸ It is therefore necessary to reiterate Thompson’s more Wilsonian stance and, by a careful examination of Wilson’s law lectures, dispel the Marshall-Story confusion about the original jurisdiction of the Supreme Court as it might (mistakenly) be seen to bear on *Cherokee Nation*.

As Thompson made clear, “any distinction” between treaties made with the Native Nations and treaties made with any other foreign powers is without foundation in the Constitution.¹¹⁹ The Cherokee people composed a foreign state within the sense of the constitution, constituted a competent party to maintain a suit against the state of Georgia, and their bill presented a case for consideration to which an injunction was a fit and proper response that should be awarded to prevent the further exercise of Georgian laws violating the laws of the United States and treaties made under their authority.¹²⁰ As Albert Beveridge, Marshall’s biographer, acknowledged more than a hundred years ago, Marshall “could easily have decided in favor of the wronged and harried Indians, as the dissent of Thompson and Story proves.”¹²¹

In the conclusion to *Cherokee Nation*, Marshall declared, in words that would have sickened James Wilson: “If it be true that the Cherokee Nation have rights, this is not the tribunal in which those rights are to be asserted. If it be true that wrongs have been inflicted, and that still greater are to be apprehended, this is not the tribunal which can redress the past or prevent the future.”¹²² Denying the state of Georgia the right to unilaterally commit genocide in *Worcester*, while in no way challenging the claim that the Congress had such a “right,” Marshall acknowledged that the Cherokee Nation did in fact have some traditional and “natural” rights while continuing to deny that they had any constitutional rights derived from the treaty-obligations of the United States. There was, in other words, no legal obstacle in Marshall’s twisted and utterly reactionary jurisprudence to prevent the federal government from encroaching upon or even eliminating traditional and “natural” Cherokee rights at pleasure. These rights – up to and including the very *sovereignty* of the Native Nations – as a later Supreme Court would (wrongly) declare – “exists only at the sufferance of Congress and is subject to complete defeasance.”¹²³

¹¹⁷ Akhil Reed Amar, “A Neo-Federalist View of Article III: Separating the Two Tiers of Federal Jurisdiction,” *Boston University Law Review* 65 (March 1985): 205, 219 n.57.

¹¹⁸ Joseph Story, *Commentaries on the Constitution of the United States*, vol. 1 (Hilliard, Gray, and Company, 1833), 135–36.

¹¹⁹ 30 U.S. 1, at 60, 80 (1831).

¹²⁰ 30 U.S. 1, at 80 (1831).

¹²¹ Albert Jeremiah Beveridge, *The Life of John Marshall*, vol. 4 (Boston: Houghton Mifflin, 1944), 546.

¹²² 30 U.S. 1, at 80.

¹²³ *United States v. Wheeler*, 435 U.S. 313, 323 (1978).

In *McGirt v. Oklahoma*, in 2020, the Supreme Court reaffirmed this twisted and anticonstitutional claim that all Congress needs to do to destroy a Native Nation is “say so.”¹²⁴ The Congress, Justice Neil Gorsuch also wrote, has “authority to breach its own promises and treaties.”¹²⁵ These two claims are part of an absurd position – full of genocidal brutality and at odds with constitutional law and the law of nations as they were understood by the framers – that has yet to be officially repudiated. This is the position that the United States is bound by neither treaties, nor by the law of nations as it was understood by the framers, even as far as the pursuit of genocide is concerned, except to the extent that the Executive and the Congress may deign themselves to be.

It may well be, as Gorsuch’s opinion in *McGirt* maintained, that “At the end of the Trail of Tears there was a promise.”¹²⁶ Certainly there were promises made in solemn treaties and specific constitutional clauses long *before* the Trail of Tears that were broken in order to allow the genocides and land thefts that followed – including being repeatedly broken by the Supreme Court itself in direct violation of the law (properly construed). But the Supreme Court has yet to begin to come to terms with its own criminality. And the American people have yet to think through how that corrupt institution can be radically reformed or replaced.

Turning now to the question of the original jurisdiction of the Supreme Court, it is essential to take a genuinely holistic approach to construing constitutional law; an approach that takes account of the Treaty Supremacy Clause and the way it was intended to function in service to peaceful adjudication among nations in accordance with the law of nations and, ultimately, natural law. Here, again, Wilson’s law lectures are illuminating. My argument in this regard, to reiterate, is that the Constitution gives the Supreme Court original jurisdiction in all nine categories of cases specified in Article III, Section 2 (including not only those cases referred to as controversies), until such time as the Congress chooses to create lower federal courts in which circumstance the Supreme Court still retains original jurisdiction in any case arising in any of the nine categories of cases specified in which a state is party to the case or ambassadors or other public ministers and counsels are affected. Here is the relevant text of the Constitution with the critical clause in italics:

The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority; – to all Cases affecting Ambassadors, other public Ministers and Consuls; – to all Cases of admiralty and maritime Jurisdiction; – to Controversies to which the United States shall be a Party; – to Controversies between two or more States; – between a State and Citizens of another State, – between Citizens of different States, – between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects. *In all Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party, the supreme Court shall have original Jurisdiction.* In all the other Cases before mentioned, the supreme Court shall have appellate

¹²⁴ *McGirt v. Oklahoma*, No. 18-9526 (Oklahoma Crim. App. July 9, 2020), https://www.supremecourt.gov/opinions/19pdf/18-9526_9okb.pdf (accessed August 20, 2020).

¹²⁵ *Ibid.*

¹²⁶ *Ibid.*

Jurisdiction, both as to Law and Fact, with such Exceptions, and under such Regulations as the Congress shall make.¹²⁷

In his law lectures, Wilson made clear that the American people and the states, acting together, “have engaged that the judicial power of the United States shall extend ‘to controversies between two or more states; between a state and the citizens of another state; between citizens of different states; between citizens of the same state claiming lands under grants of different states; and between a state, or the citizens thereof, and foreign states, citizens, or subjects.’”¹²⁸ “In all those different enumerated cases,” Wilson continued, “the tribunals of the United States have judicial authority to decide. By what law shall their decisions be governed? Before the establishment of the national government, controversies happening in those enumerated cases, if determined at all, must have been determined by the principles and rules of the law of nations. But before that establishment, there was no power to determine them judicially by any law.”¹²⁹

In all but the first of those categories of what Wilson referred to as “enumerated cases” (those prefaced with the word “controversies” in Article III, Section 2), those cases are grouped together by Wilson because they bear a distinctive relationship to the law of nations. The word “all” as repeatedly used earlier in Article III, Section 2, was not repeated in front of each of the “controversies” either because it was considered superfluous or, perhaps, because there are some controversies involving the United States to which the judicial power of the United States would not necessarily extend, such as, at least conceivably, those involving active hostilities undertaken in self-defense.

Reading Wilson closely leaves no doubt that all nine categories of cases are categories to which the judicial power extends and that there is no reason to distinguish among the less than fully inclusive class of cases subtly referred to by Marshall as “cases,” and the class of cases referred to as “enumerated cases” and as “controversies,” for purposes of allocating original or appellate jurisdiction. What is decisive in that regard is whether or not a state is a party to the case or it affects ambassadors or other public ministers and counsels and whether the Congress has established lower federal courts. If the Congress has yet to do so, the Supreme Court retains original jurisdiction in all nine categories of cases – in other words in both of what Marshall claims are distinct “classes of cases.” If Congress has established lower courts, the Supreme Court retains original jurisdiction in every case arising in each of the nine categories to which a state is a party or ambassadors or other public ministers and counsels are affected.

Contrast the lucidity of the gloss that I have just offered, drawing on the words of the principal draftsman of the article, with what law professor James Pfander has described as Marshall’s “hash” in *Cohens*:

Jurisdiction is given to the Courts of the Union in two classes of cases. In the first, their jurisdiction depends on the character of the cause, whoever may be the parties. This class comprehends “all cases in law and equity arising under this Constitution, the laws of the United States, and treaties made, or which shall be made, under their authority.”

¹²⁷ Article III, Section 2, emphasis added.

¹²⁸ James Wilson, “Of Man,” 686.

¹²⁹ James Wilson, “Of Man,” 687.

This clause extends the jurisdiction of the Court to all the cases described, without making in its terms any exception whatever, and without any regard to the condition of the party. If there be any exception, it is to be implied against the express words of the article. In the second class, the jurisdiction depends entirely on the character of the parties. In this are comprehended “controversies between two or more States, between a State and citizens of another State,” “and between a State and foreign States, citizens or subjects.” If these be the parties, it is entirely unimportant what may be the subject of controversy. Be it what it may, these parties have a constitutional right to come into the Courts of the Union.¹³⁰

This distinction that Marshall imagined between “the character of the cause” and “the character of the parties” attained its significance from a confusion on his part rooted in a failure to perceive that the “enumerated cases” are grouped together not by “the character of the parties,” or even by the fact that they are enumerated and “controversies,” but because, for Wilson, they all arose strictly in relation to the law of nations, or at least did so before the establishment of the Constitution enabled them to be addressed through American courts interpreting that law.

For Marshall, “The Constitution gives the Supreme Court original jurisdiction in certain enumerated cases, and appellate jurisdiction in all others.”¹³¹ If this were true, it would have been remarkably easy for the framers to say so in exactly that language. But it is not true.

Marshall arrived at his misreading – and his spurious claim that original jurisdiction applies only to certain “enumerated cases” – by a twisted interpretation of the last sentence in the second paragraph in Article III, Section 2, so that it was made to apply not to the relationship between the “cases” in the immediately preceding sentence (those in which a state is party or ambassadors or other public ministers and counsels are affected), and “all the other Cases before mentioned” (all of the cases in all of the eight other categories of cases including both “enumerated” cases and non-enumerated ones), but rather to a specious distinction between two allegedly significant “classes of cases” determined by the “character of the cause” and the “character of the parties.” Marshall’s approach in this regard has no obvious connection to the intentions of the framers, the logico-grammatical meaning of the text of the Constitution, or the way that text was understood by its “original” readers.

Indeed, Marshall’s interpretation directly contravenes the text of Article III, Section 2: “In all Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party, the supreme Court shall have original Jurisdiction. In all the other Cases before mentioned, the supreme Court shall have appellate Jurisdiction, both as to Law and Fact, with such Exceptions, and under such Regulations as the Congress shall make.”

Marshall’s assertion that because individual states (among other entities) are mentioned in the “class” of categories of cases known as “enumerated cases” and as “controversies,” original jurisdiction was meant to apply only to this “class,” overlooks the fact that the intention was to

¹³⁰ *Cohens v. Virginia*, 19 U.S. 264, 378 (1821); James E. Pfander, “Rethinking the Supreme Court’s Original Jurisdiction in State-Party Cases.”

¹³¹ 19 U.S. 264, at 392–94 (1821). “When, then, the constitution declares the jurisdiction, in cases where a state shall be a party, to be original, and in all cases arising under the constitution or a law to be appellate, the conclusion seems irresistible, that its framers designed to include in the first class, those cases in which jurisdiction is given, because a state is a party; and to include in the second, those in which jurisdiction is given, because the case arises under the constitution or a law.” 19 U.S., 393–94.

stress the obligations of states under the Constitution – and to provide a guarantee that they were answerable to these obligations”¹³²

What is twisted in Marshall’s reasoning is the claim that the assignment of original jurisdiction in “all” cases in which a state is a party is to be shoehorned exclusively into his imaginary “class” (determined by the “character of the parties”) rather than apply as well – as Wilson clearly intended – to “all” cases arising under the Constitution, laws, and treaties of the United States in which a state is a party to the case.

Wilson’s understanding and intention is apparent in his remarks in the Pennsylvania ratifying convention – in other words *before* the Congress had established lower federal courts – where he confidently asserted that a treaty-violating betrayal of constitutional law (of the kind in which Georgia would engage as a consequence of Marshall’s wrongly decided opinion in *Cherokee Nation v. Georgia*) could not take place precisely because the original jurisdiction of the Supreme Court guaranteed that the court would force a treaty-breaking state to adhere to constitutional law regardless of the actions of its legislature. The Supreme Court’s original jurisdiction in all cases arising under a treaty in which a state was a party to the case would suffice to ensure that no state could violate the good faith of the United States – that this faith was part of its constitutional character: “This clause, sir, will show the world that we make the faith of treaties a constitutional part of the character of the United States; that we secure its performance no longer nominally, for the judges of the United States will be enabled to carry it into effect, let the legislatures of the different states do what they may.”¹³³

For Wilson, the fact that the courts of common law in England had made application of the law of nations – in the form of the law of merchants – was a great and inspiring accomplishment. It paled beside the hope that Wilson expressed in his law lectures (after lower federal courts had been established) for the United States in its relationship with the law of nations:

Hitherto that great law has been applied and administered by the force or by the pleasure of the parties in controversy: in the United States, it can now be applied and administered by impartial, independent, and efficient, though peaceful authority. This deduction, if properly founded, places the government of the United States in an aspect, new, indeed, but very conspicuous. It is vested with the exalted power of administering judicially the law of nations, which we have formerly seen to be the law of sovereigns.... To every citizen of the United States, this law is not only a rule of conduct, but may be a rule of decision. As judges and jurors, the administration of this law is, in many important instances, committed to their care. What a beautiful and magnificent prospect of government is now opened before you! The sluices of discord, devastation, and war are shut: those of harmony, improvement, and happiness are opened! On earth there is peace and good will towards men!¹³⁴

Discussing the Treaty Supremacy Clause in the Virginia ratifying convention, James Madison made a similarly enthusiastic statement: “The general policy of that clause is to prevent all

¹³² Pfander, “Rethinking the Supreme Court’s Original Jurisdiction in State-Party Cases,” 555–659.

¹³³ “Remarks of James Wilson in the Pennsylvania Convention to Ratify the Constitution of the United States, 1787,” in Hall and Hall, eds., *The Collected Works of James Wilson*, vol. 1, at 246.

¹³⁴ James Wilson, “Of Man,” 687–688.

occasions of having disputes with foreign powers.”¹³⁵ The Supreme Court, in Wilson’s and Madison’s vision, was to function at times as a quasi-international tribunal deciding on behalf of foreign powers when these powers were in the right, and against the states of the United States when these states were in the wrong, and so maintaining peace, honor, and prosperity.¹³⁶

In the social self understanding of the American people, the democratic jurisprudence that Wilson and his allies offered – with its emphasis on the responsibility of the American people in their entirety, and the need for each and every citizen to adopt virtuous conduct in accord with their knowledge of the law of nations and of natural law – proved no match for the licentious hybrid of fifteenth century religious jurisprudence and ethnonationalism that John Marshall and his allies seized upon to bolster federal authority (not that the “states’ rights” version of that hybrid was in any way better).

There was, in a non-idolatrous Protestant version of Christianity, another basis for an alternative social self-understanding that the American people might have held more dearly. In a 1781 book – that John Marshall cited in *Johnson* while completely ignoring its central arguments – Samuel Wharton argued for a position akin to the non-idolatrous Roman Catholic version of Christianity that Las Casas had advocated. The book was called: *Plain Facts: Being an Examination Into the Rights of the Indian Nations of America, to their respective Countries*, and in it Wharton launched a memorable attack on the doctrine of Christian discovery:

But if the princes and people of Europe, in more ignorant and superstitious ages, were so misled by the emotions of avarice, ambition, or religious pride, as to believe it justifiable for them to cross the Atlantic, and usurp the possessions of unoffending nations, only because they did not believe in religious doctrines, of which they had never heard, yet the pervading liberal influence of philosophy, reason, and truth, has since given us better notions of the rights of mankind, as well as of the obligations of morality and justice; which certainly are not confined to particular modes of *faith*, but extend universally to Jews and Gentiles, to Christians and Infidels. And, indeed, the injustice of these attempts to usurp the aboriginal possessions of so many of our fellow creatures, from a deficit in their religious opinions, was so manifest, that they never could have been suggested by any other than the detestable policy, and unchristian ambition, which for many ages governed the *Papal See*.... The Divine Author of our holy religion, when on earth, affirmed no temporal dominion or property, but submitted himself on every occasion, even when criminally arraigned, to the jurisdiction and authority of Infidel magistrates, declaring *that his kingdom was not of this world*; and surely none of his disciples can justly arrogate to themselves powers which their great

¹³⁵ James Madison, June 19, 1788, *The Documentary History of the Ratification of the Constitution: Virginia*, vol. 10, at 1409, <http://digicoll.library.wisc.edu/cgi-bin/History/History-idx?type=turn&entity=History.DHRCv10.p0267&id=History.DHRCv10&size=M> (accessed August 21, 2020).

¹³⁶ An argument has been made that this constitutional mechanism should be reclaimed which does a persuasive job of criticizing the Supreme Court’s decision in *Principality of Monaco v. Mississippi*, 292 U.S. 313 (1934) but without recognizing the need to reverse *Cherokee Nation* and without any apparent awareness of Wilson’s jurisprudence. See Thomas H. Lee, “The Supreme Court of the United States as Quasi-International Tribunal: Reclaiming the Court’s Original and Exclusive Jurisdiction over Treaty-Based Suits by Foreign States against States,” *Columbia Law Review* 104 (November 2004): 1765–1885; John Mikhail, “Early American Land Companies, and the Original Meaning of ‘Ex Post Facto Law’,” *Georgetown Journal of Law & Public Policy* 17 (Winter 2019): 79–146, especially p. 125; John J. Gibbons, The Eleventh Amendment and State Sovereign Immunity: A Reinterpretation, *Columbia Law Review* 83 (December 1983): 1905–09.

Master has disclaimed, nor pretend, that he has anywhere authorized them to expect earthly dominion or riches as the rewards of piety and virtue; much less can they plead his permission to acquire them by injustice and violence.¹³⁷

A similar combination of Wilsonian jurisprudence and non-idolatrous Christianity was voiced by Rhode Island’s Senator Asher Robbins who, in 1830, appealed to the law of nations and to natural law and, especially, to the binding legal character of treaties:

It is said ... that the Indian is an inveterate savage, and incapable of civilization. Admitting this to be the fact, which I by no means admit, what has it to do with the question, whether his nation is *sui juris*, and competent to make a treaty. Is the Indian right less a right because the Indian is a savage? Or does our civilization give us a title to his right? A right which he inherits equally with us, from the gift of nature and of nature’s God. The Indian is a man, and has all the rights of man. The same God who made us made him, and endowed him with the same rights; for “of one blood hath he made all the men who dwell upon the earth.” And if we trample upon these rights, if we force him to surrender them, or extinguish them in his blood, the cry of that injustice will rise to the throne of God and there, like the blood of Abel, will testify against us. If we should be arraigned for the deed before his awful bar, and should plead our boasted civilization in its defence, it would, in his sight, but add deeper damnation to the deed, and merit but the more signal retribution of his eternal justice. As to the civilization of the Indian, that is his own concern in the pursuit of his own happiness; if the want of it is a misfortune, it is his misfortune; it neither takes from his rights nor adds to our own.¹³⁸

Though Wharton’s and Robbin’s position was far more honest and accurate, that position was defeated in the Congress and in the Supreme Court by the position of Georgia Senator John Forsyth and his allies with their boldfaced lies and self-deluded self-righteousness about the past grounded in their fanatic religious ethnonationalism. As Forsyth put it: “All Christendom seems to have imagined that, by offering that immortal life, promised by the Prince of Peace to fallen man, to the aborigines of this country, the right was fairly acquired of disposing of their persons and their property at pleasure.”¹³⁹

The weakness in Robbins’ and Wharton’s positions, like the weakness in Las Casas’ and Wilson’s positions, was a failure to recognize and respect the international laws and usages of

¹³⁷ Samuel Wharton, *Plain Facts: Being an Examination Into the Rights of the Indian Nations of America, to Their Respective Countries* (Philadelphia: R. Aitken, 1781), 5–6. “The opinion of the Attorney and Solicitor General, Pratt and Yorke, have been adduced to prove that in the opinion of those great law officers, the Indian grant could convey a title to the soil without a patent emanating from the Crown. The opinion of those persons would certainly be of great authority on such a question, and we were not a little surprised when it was read, at the doctrine it seemed to advance. An opinion so contrary to the whole practice of the Crown and to the uniform opinions given on all other occasions by its great law officers ought to be very explicit and accompanied by the circumstances under which it was given, and to which it was applied before we can be assured that it is properly understood. In a pamphlet written for the purpose of asserting the Indian title, styled “*Plain Facts*,” the same opinion is quoted, and is said to relate to purchases made in the East Indies. It is, of course, entirely inapplicable to purchases made in America. Chalmers, in whose collection this opinion is found, does not say to whom it applies, but there is reason to believe that the author of ‘*Plain Facts*’ is, in this respect, correct.” *Johnson v. McIntosh* 21 U.S. 543, 599 (1823).

¹³⁸ April 21, 1830, United States Senate, 21st Congress, 1st Session, *Register of Debates*, at 376.

¹³⁹ April 15, 1830, United States Senate, 21st Congress, 1st Session, *Register of Debates*, at 333.

the peoples of the Native Nations of this hemisphere. They were thus defending the rights of the Native Nations on the basis of the twisted assumption that eurochristians had the right and ability to define these Native Nations’ rights with eurochristian understandings of “the law” as if they could bring their law with them to the “New World” rather than accept their obligation to “when in Rome, do as the Romans do.”

What we most need is not merely a revival of natural law, globally, as it was understood by the best of its western practitioners – such as James Wilson and Bartolomé de Las Casas – but a revival of natural law, globally, as it was and is understood by the elders of the peoples of the Native Nations. We need these revivals to take place in a context of widespread global knowledge – a context that recognizes the far greater understanding of the true unwritten constitution of Turtle Island among the peoples of the Native Nations than among the American people. We need to be able to say, in response to the claim that this true constitution should govern as the supreme law of the land: so be it. We, the American people, are young and have a lot to learn as to who we are. “Federal Indian Law” is compatible with who we have been, and incompatible with who we want to be – with who we truly think we are beneath our crimes and mistakes – and so must be overturned.

In calling for this change in American law, I do not mean to encourage the United States to rush into some misguided effort to “fix” things. It is essential to remember that those who have presented themselves as “friends” of the Indians determined to “help them” by “fixing things” have traditionally been the worst enemies of these peoples and their Nations. My call is, first and foremost, for the American people to sit with the grief of the suffering of these peoples – suffering we have caused – not in order to wallow in guilt but rather in order to open ourselves to a different way of being in the world. This way would begin by the pursuit of right relations with the peoples of the Native Nations as a prerequisite to moving away from injustice in accord with *their* views of their own experiences and *their* understandings of how improvements could be undertaken. As a matter of honesty – as a matter of minimal intellectual hygiene – we must acknowledge that we have no valid claim to exercise domination over these peoples or their lands and that each and all of these Native Nations have a right to a viable land base on which to restore their genuine self-government and free and independent way of life. The transformation of our shared social worlds in accordance with the principles of the international laws and usages that were present on Turtle Island before the eurochristian invaders arrived will be a major challenge for these peoples and for the American people as well. It is the direction in which we all should seek to move together.